

FIRST SCRUTINY

The Restoration Programme

What the programme is, and the argument it turns on

An issues paper. The starting point of legislative scrutiny, not the end of it.

A draft for the proposers to correct.

Proposer: David Starkey

Scrutiny by Scrutinise · Second draft, revised 14 September 2026 · Volume 1 of 3

Scrutinise is free and non-partisan. It takes a proposal and works out what delivering it would actually require. It is available on identical terms to anyone.

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The Part number is in the banner across the top of every page, with the section name beside it.

What is this Document?

This document takes a political programme and works out what it would take to actually do it.

That is the whole idea behind Scrutinise. Someone says what they want changed. Scrutinise works through what would have to happen — which laws, which bodies, which decisions, which obstacles — and hands it back with the questions only the proposers can answer.

Twelve measures, not one

Most of the public discussion treats "the Starkey thesis" as a single idea. It is not. It is at least twelve separate changes, each with its own law, its own opposition and its own difficulty. Some are simple. Some have never been attempted by anyone. Two are already before Parliament in skeleton form.

Volume 1 looks at the issues relevant to all twelve measures. Volume 2 looks at each measure in isolation, and what each would entail. Volume 3 holds the detailed research sources and references — including an appendix giving a modern, searchable text of David's 278 YouTube items relating to politics.

What is in it

David's Programme

- The register — the twelve key changes, in David's own words, with the law that would have to change, and why
- Whether repeal alone achieves what is intended, tested against the courts and against two published legal analyses
- Four different plans proposed within a year by people on the same side of the argument, and where they contradict each other
- What repeal does to Scotland, Wales and Northern Ireland
- The published positions on each measure, including the ones that cut against David's Programme and the ones that have overtaken it

For each measure worked in full

- What the law actually does, and what it does not do
- What else in the law points at it, counted and grouped
- What the courts have said
- What was tried before, and what happened to it
- How hard this will be, and what is most likely to go wrong

What this is not

It is not a finished proposal, a recommendation, or a costing. Nothing here argues that this programme should proceed. It sets out what proceeding would involve.

It is also not complete, and does not pretend to be. It is a first pass whose purpose is to show the shape and depth of what David's Programme entails. Carrying it through would need planning, strategy and resourcing well beyond anything in this document.

And it is a pilot. Scrutinise is new, and this is among the first proposals put through it. Where a section misses, saying so is the most useful correction available. Some items will be a simple deletion; others will open something that has to be worked properly.

Three limits to know first

Every finding traces to a source and is dated. Where the document reasons rather than cites, it says so. Where the record is silent, that is said too — **a gap that names itself is worth more than one that looks like an absence of evidence.**

Three limits you should know before you read anything else.

One. The record of court judgments used here begins in 2003. The free public record starts in 2001 at the earliest. Older judgments are available to view, but not to search and analyse. No citator — the tool lawyers use to check whether a judgment has since been doubted or overruled — was available for this pass, so it cannot be confirmed that none of the judgments cited has been doubted or overruled. That check should be done before any of this argument is relied on.

Two. Quotations from spoken material are machine-transcribed. Any quotation should be checked against the recording, and the timestamp is given so that it can be.

Three. Every number says what it counts and out of what. Where the document says "23 Acts were cited", that means 23 in the material retrieved — not 23 in the world.

This document has not been reviewed by qualified legal opinion. It is the starting point of legislative scrutiny, not the end of it. Expert legal advice is an essential part of the proposer's development of these ideas.

Marks used in this document

In running text, source confidence is stated in words:

- **[verified]** — the citation has been checked and the document exists
- **[corroborated, unchecked]** — named independently by more than one research pass, but not yet checked against the source
- **[single mention, unchecked]** — named once only, a lead rather than a citation

In tables the same three are marked ✓, ● and ○, with the key printed beneath each table that uses them.

⚠ marks a finding that cuts against the expected answer. ⚠⚠ marks one that changes what a section concludes.

Glossary

Terms of art used in this document, defined once here rather than in the body.

Term	What it means
Absorption	The process by which a right originally created by a statute comes to be protected from repeal by being embedded in case law through common law judgements.
Annulment (as used in this programme)	Legislating to declare that provisions never had legal effect, rather than repealing them prospectively. Distinct from ordinary repeal, and constitutionally contested.
Citator	The tool a lawyer uses to check what later courts have done with a judgment — followed, distinguished, doubted or overruled it.
Consequential amendment	A change to another Act made necessary by the main change, usually to correct cross-references. A repeal of any substantial Act generates many.
Declaration of incompatibility	A statement by a senior court under section 4 of the Human Rights Act 1998 that a provision cannot be read compatibly with the Convention. It does not strike the provision down but puts the question back to Parliament.
Devolved / reserved	A devolved matter is one the Scottish Parliament, Senedd or Northern Ireland Assembly may legislate on; a reserved matter is one Westminster keeps. Which it is determines who must agree.
Enabling power	A provision in an Act authorising a minister to make secondary legislation. Provisions reached this way are counted separately here from those named directly.
Henry VIII power	A power in an Act allowing a minister to amend or repeal primary legislation by order, without a new Act. Named for the Statute of Proclamations 1539.
Interpretive obligation	The duty under section 3 of the Human Rights Act 1998 to read legislation compatibly with the Convention so far as it is possible to do so.
Legislative consent motion	The vote by which a devolved legislature consents to Westminster legislating on a devolved matter. See <i>Sewel convention</i> .
Long title	The opening words of a Bill describing its purpose. It limits what may be added by amendment, so a narrow long title constrains what a Bill can be made to do.
Ouster clause	A provision seeking to exclude or limit the courts' jurisdiction to review a decision.
Per incuriam	Of a judgment: reached in ignorance of a binding authority or statutory provision, and therefore not binding on later courts.
Primary / secondary legislation	Primary legislation is an Act of Parliament. Secondary (or delegated) legislation is made under an Act by a minister, usually as a statutory instrument.
Public sector equality duty	The duty in section 149 of the Equality Act 2010 requiring public bodies to have due regard to specified equality objectives when exercising their functions.
Remedial order	Secondary legislation made under section 10 of the Human Rights Act 1998 to correct a provision found incompatible with the Convention.
Sewel convention	The convention, given statutory recognition but not made enforceable, that Westminster will not normally legislate on devolved matters without that legislature's consent.
Statutory instrument	The usual form of secondary legislation. Several thousand are made each year.
Sunset clause	A provision causing an Act or part of it to expire on a stated date unless renewed.
Treatment (of a judgment)	What a later court did with an earlier decision: followed, applied, distinguished, doubted, disapproved, not followed, read down, per incuriam, or overruled.

PART 1

THE PROGRAMME, IN DAVID'S OWN WORDS

There has been a tendency, because of Brexit, to see things in terms of British law versus EU law. However, the serious literature suggests these ideas sit within a wider and stronger narrative framework — the political constitution against the legal constitution — and positioning David's Programme on that axis changes who its allies are.

Political constitutionalism versus legal constitutionalism. It traces to a 1979 lecture by J. A. G. Griffith called *The Political Constitution* [corroborated, unchecked].

	The political constitution	The legal constitution
Where authority sits	The elected majority in the Commons	Enforceable rights, treaties and statutory duties
How power is checked	Elections, ministerial responsibility, public argument	Judicial review, regulators, tribunals, international courts
What judges do	Interpret what Parliament meant; develop the common law step by step	Test executive decisions against rights and equality standards
What democracy means	Procedural — what the majority chooses through elected representatives is legitimate	Substantive — a real democracy requires legal constraints protecting rights and minorities

⚠️ **Why this matters more than it looks.** On the "British versus European" framing, David's Programme is making a nationalist argument, and it is vulnerable to attacks that portray it as small-minded, petty and parochial, or xenophobic — as well as to Sir John Laws' legal arguments, set out below. **On the political-versus-legal framing, it joins a serious argument with serious people on both sides, including people who are not on its political side at all.**

*Sir John Laws, *The Common Law Constitution* (2014) [corroborated, unchecked] — one of the most important British public-law judges of his generation — argues in his book that the common law itself supplies constitutional principle and itself polices the boundary between political power and legal constraint. If accepted, strong judicial constraint is not an import. It grew here.*

⚠️ **This destroys the binary:**

British common law = parliamentary government · European rights law = judicial government

If Laws is right, repealing the Human Rights Act and leaving the Convention removes the imported layer and leaves the domestic one standing — which is precisely what Part 2.1 finds from the case law, arrived at independently.

David's Programme needs an answer to this, and the more powerful argument looks to be the political-constitution body of argument — which seems to encapsulate the case the Starkey Thesis is making, whether the judicial power in question sits at home or abroad.

Who is on each side

⚠️ Names and works below are drawn from the research. Those marked [corroborated, unchecked] were named independently by two or more; [single mention, unchecked] by one only. None has been read in full for this pass. They are a reading list, not authority.

Arguing that political choice has been displaced by legal process

Who	Work
Lord Sumption ✓	<i>Trials of the State</i> / 2019 Reith Lectures. The most formidable statement of the case, made from the bench
Lord Hoffmann ●	<i>The Universality of Human Rights</i> , 2009 lecture. Objects to Strasbourg's claim to set uniform European standards
Professor Richard Ekins ●	Policy Exchange's Judicial Power Project, 2015 onwards
Sir Stephen Laws ●	Former First Parliamentary Counsel. ⚠ Note: he sat on the 2021 review that recommended keeping the Human Rights Act
Professor Martin Loughlin ●	<i>Against Constitutionalism</i> (Harvard, 2022). ⚠ A critique from the left
Professor Adam Tomkins ●	<i>Our Republican Constitution</i> (2005). Executive should answer politically through Parliament, not legally through courts
Professor Richard Bellamy ○	<i>Defending the Political Constitution</i> (2026). ⚠ Named once. If real, it is the most directly relevant recent book
Ran Hirschl ○	<i>Towards Juristocracy</i> (2004). Argues this is a general Western pattern, not a British plot
David Starkey ✓	<i>Bingham's failed revolution</i> , <i>The Critic</i> , March 2025

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

Arguing that the settlement works and is not anti-democratic

Who	Work
Lord Bingham ●	<i>The Rule of Law</i> (2010). The eighth principle is the crux
Professor Aileen Kavanagh ●	<i>The Collaborative Constitution</i> (2023). Named by all four passes. Argues courts, Parliament and the executive work in partnership rather than competing for supremacy
Professor Sir Vernon Bogdanor ●	<i>The New British Constitution</i> (2009). The standard account that a constitutional revolution happened without being announced
Professor Conor Gearty ●	<i>On Fantasy Island</i> (2016). Argues the "foreign imposition" story is a political construction
Lady Hale, Lord Reed, Lord Neuberger ●	Extra-judicial lectures denying a US-style political role for the court
Lord Hermer KC ●	Attorney General. 2024 Bingham Lecture, treating "rights versus democracy" as a false choice

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

⚠️⚠️ The ally David's Programme has not noticed

Griffith, Tomkins, Loughlin and — if it exists — Bellamy make substantially the same diagnosis as David's Programme, from the left. Their argument is that political choices have migrated to legal and expert bodies, and that this insulates decisions from electorates.

They disagree about the remedy, not the diagnosis.

One named example: **Peter Ramsay, writing in April 2025** [single mention, unchecked], accepts the diagnosis and rejects the remedy — arguing that much of this legislation must go for government to be democratically accountable, while treating the Great Repeal as the dead end of the Thatcherite right.

⚠️ **That is a more useful opponent than a defender of the status quo**, and it is the strongest available evidence that the Programme's diagnosis is not a partisan position. **Proponents rarely read this literature. It is their best argument that the case is not party-political.** Working alongside them may bring left-wing support for the measures, which is critical in getting them passed in Parliament and supported across the population.

What a well-informed critic will cite that a proponent may not have read

This is the shelf to have confronted before publishing legislation. It is not the other side's slogans; it is the material that makes the strongest case that these statutes do something other than the repeal case says.

1. **The full 2021 Human Rights Act review** [corroborated, unchecked], not the press coverage. Government-commissioned, appeal judge in the chair, a former First Parliamentary Counsel on the panel — and it recommended keeping the Act.
 2. **The 2021 administrative law review** [corroborated, unchecked] — a second sceptic-chaired government review that looked for overreach and found the problem smaller than alleged.
 3. **Kavanagh, The Collaborative Constitution**** [corroborated, unchecked] — the current academic answer to "judges versus democracy", which rejects the premise rather than the conclusion.
 4. **Sir John Laws, The Common Law Constitution**** [corroborated, unchecked] — for the reason set out above.
 5. **The Belfast/Good Friday Agreement texts themselves**, and the competing Northern Ireland legal opinions. See Part 2.4.
 6. **Bingham read properly** [corroborated, unchecked] — chapter on parliamentary sovereignty, with the 2008 article. He is not the patron saint of judicial supremacy and a critic will say so.
 7. **The devolution statutes and the Sewel convention** [corroborated, unchecked] — a Westminster-only programme collides with three of them.
 8. **The pre-1998 common-law rights cases** [corroborated, unchecked] — *Simms, Witham, Leech, Pierson*. ⚠️ **If you repeal the Human Rights Act you do not return to a blank common law. You return to one that senior judges had already said contains fundamental rights.** David has himself made this point; these cases are what make it precise.
 9. **Comparative evidence on impartial civil services** [corroborated, unchecked] — the claim that statutory impartiality makes a state ungovernable is an empirical claim, and the comparative work runs the other way.
 10. **The actual text of section 149** — "due regard", not "achieve equality of outcome". ⚠️ **Much of the repeal case is a case against institutional practice that may not be required by the section**, and a critic will insist on that distinction before arguing that practice can be changed by guidance rather than repeal.
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And the development that cuts against the central premise

A load-bearing premise of David's Programme is that the Convention system cannot be reformed, so only leaving works.

In May 2026 all 46 Council of Europe member states adopted a political declaration at Chişinău on the Convention and migration [verified] — subsidiarity, the margin of appreciation, Articles 3 and 8 in expulsion cases, and mass arrivals.

 **Both sides of this have to be stated.** It is not binding, does not amend the Convention, and does not bind the Strasbourg court — so whether it changes any outcome is an open empirical question. **But 46 states have just done, by declaration, the thing the premise says cannot be done, on precisely the ground where the pressure is greatest.**

That is a contested development, not a refutation. It is also the question David's Programme is most likely to be asked in public and least prepared for.

	Measure	Depth in this document
1	The Human Rights Act 1998 and the European Convention	★ Worked in full — Part 6.1
2	The Equality Act 2010 and the public sector equality duty	★ Worked in full — Part 6.2
3	The UK Supreme Court	Register and summary
4	The arm's-length bodies — the "quangos"	Register and summary
5	Judicial review of ministers' decisions	Register and summary
6	The permanent, appointed civil service	★ Worked in full — Part 6.3
7	The independence of the Bank of England	Register and summary
8	Diversity and inclusion practice in the civil service	Register and summary
9	Gender self-identification	Register and summary
10	Publicly funded charities campaigning	Register and summary
11	The Sentencing Council and sentencing guidelines	Register and summary
12	The Great Repeal itself — David's Programme as one Act	★ Tested in Part 3

Three are worked all the way down, in Volume 2, so you can see the depth available and multiply it by twelve. The Human Rights Act because it is the flagship and has the most published work behind it. The Equality Act because a Bill to do part of it is before the Commons now, and because it produced the most surprising result in the document. The civil service because it is the one measure that fails every test, and the gap between what is said and what would have to be drafted is widest there.

Where this list came from

The list is built from David's own words.

The source is a corpus of **285 recordings of David speaking** — the lecture series, the conference addresses, the long-form interviews — held as machine transcripts, searched in full. ⚠️ **All quotations should be checked against the recording before they are relied on.** The timestamp is given in every case so that they can be.

Each of the twelve above is something David is recorded as saying. The register in the next section gives the words.



Why this list is not the list being attributed to David

⚠️ ⚠️ **There is no published twelve-point Starkey programme.** A repeal programme is discussed as though there were one, but a search of the public record found no document setting it out. What exists instead is other people's programmes, written by named authors, being read as David's. Three are in circulation:

Source	What it sets out
Popular Conservatism, "Conservative Party Embraces David Starkey Thesis", PopCon Newsdesk, 14 May 2026 [verified]	The Conservative Party's Alternative King's Speech, presented under David's name in the headline. Includes: <i>"Repeal the Climate Change Act 2008, to give us the freedoms needed to cut energy prices, rebuild energy security and cut environmental red tape on business."</i>

Source	What it sets out
Douglas Carswell, "Restore the State (Part 3): Judicial Reform — the six steps to restoration", 7 September 2025 [verified]	Six named Acts, including dissolving the Judicial Appointments Commission, restoring appointment powers to the Lord Chancellor, and a power to remove judges. It does not mention David at all.
Patrik Schumacher, "Engaging the Starkey Thesis", 28 June 2026 [verified]	A five-category summary of the thesis: human-rights incorporation, the Supreme Court, central bank independence, devolution, and the growth of arm's-length bodies

This document refers to the first of these as the **PopCon list**, because it is the only one of the three that attributes a repeal programme to David by name.

Every item across the three was checked against all 285 recordings. Four cannot be traced to anything David is recorded as saying, and two things David says repeatedly appear on none of them. Both sets are set out at the end of this Part, and the four are printed again at the end of the register, marked, so David can confirm, correct or delete them rather than have them silently attributed or silently dropped.

The assumptions made here, stated so they can be reviewed

One. Each measure is treated as a separate proposal. David's own position is that they must move together. They are split so that each can be worked properly, and the "must move together" claim is then tested on its own terms in Part 3.

Two. Where David describes a complaint rather than a remedy, the complaint is taken as the measure. The Bank of England is the clearest case: David describes mismanagement since 1998 rather than setting out what should replace independence. It is registered as a measure, with the lower confidence flagged.

Three. Where David names an example rather than a target, it is worked anyway. The Sentencing Council is named as an instance of the quango problem, not as a separate item. It is given its own entry so the document can show what dealing with one named body actually costs. **Whether it is one of the twelve is a question for David.**

Four. Where David names no legal instrument, none is invented for him. The charities measure is the case: legislation, grant conditions and Charity Commission guidance are all available and produce entirely different results. The options are set out, and the choice is recorded as unmade.

Five. The complaint is separated from the remedy throughout. David states almost every measure as a remedy — repeal this, abolish that. **A remedy is not a problem statement**, and working out what has to change starts with identifying the problem, not just the solution. So each entry states the complaint first and the proposed remedy second. Both need to be carefully reviewed.

Six. The target is taken to be the law as it stands today, not as it stood when David described it. On two measures that matters: the courts have moved since, in the direction David wants.

The three that turned out to be different from expected

Printed here because a reader flipping through should not have to find them.

Measure 6, the civil service, has an ambiguous target. David objects to the Northcote-Trevelyan reforms of 1854. The law that exists is the Act of 2010. **Repealing the 2010 Act leaves the 1854 settlement standing as**

convention — and the convention, not the statute, is what determines how Whitehall behaves. This is the largest gap in David's Programme between what is said and what would have to be drafted.

Measure 9, gender self-identification, may already be delivered. Self-identification was never enacted in Great Britain, and the Supreme Court decided the point in April 2025 in the direction David wants. What remains is enforcement, not legislation.

Measures 2, 8 and 9 are substantially one measure, not three. They converge on the same statute. Part 3 shows the working.

Four measures attributed to David that the record does not support

All 285 recordings were searched, and no statement of any of these four was found. Each of them does appear in a named published document by somebody else. They are printed here so David can confirm, correct or delete.

Attributed measure	Where it actually appears	Position
Restore the office of Lord Chancellor	Carswell, <i>Restore the State</i> (Part 3), 7 Sep 2025 — <i>"restore appointment powers to the Lord Chancellor"</i>	Not found in David's words. Note also that the office was never abolished — the Constitutional Reform Act 2005 changed its functions. David may mean restoring the old functions, which is a different and narrower thing
Repeal the Climate Change Act 2008 / end the Net Zero duty	Conservative Party Alternative King's Speech, reported by Popular Conservatism, 14 May 2026	Not found in David's words
Abolish the Judicial Appointments Commission	Carswell, <i>Restore the State</i> (Part 3) — <i>"dissolve the Judicial Appointments Commission (JAC)"</i>	Not found in David's words
Make it easier to remove named judges	Carswell, <i>Restore the State</i> (Part 3) — <i>"authority to remove senior judges whose rulings consistently demonstrate personal activism"</i>	Not found in David's words

 **Three of the four come from one document by a different author, which does not mention David anywhere.** That is how the attribution happened, and it is correctable.

And two things David says repeatedly appear on none of the three lists: the Bank of England (measure 7) and publicly funded charities (measure 10).

 **The programme David is being discussed under is not the programme David has stated.** That is a fact about the public conversation rather than about David, and correcting it is the first thing this register does.

This is the heart of the document. The left of each entry is what David said, in David's own words wherever the record allows. The right is a reading of what would have to change in the law to deliver it, and why.

Where David has been read wrongly, this is the page to correct. Everything downstream depends on these entries being right.

How to read an entry

Each measure has five parts:

- **What David said** — David's words. Where these come from a recorded talk, they are machine-transcribed and marked for checking.
- **What this appears to mean** — a reading of it, which may be wrong.
- **The law that would have to change** — the specific Acts and sections, taken from a search of the statute book.
- **What stands in the way** — the single biggest obstacle identified.
- **Status** — whether anyone has ever tried this.

1 · The Human Rights Act and the European Convention

What David said: *"we need to repeal an awful lot of law that has empowered and indeed politicised the judiciary, like the Human Rights Act, the Equalities Act"* — and, separately, on the need for *"much much clearer language about the need to repeal the European Convention and the realization of both the legal and the symbolic importance of the convention."*

What this appears to mean: Repeal the Human Rights Act 1998, and give notice to leave the European Convention on Human Rights under Article 58 of the Convention.

The law that would have to change: Human Rights Act 1998 — the whole Act, but section 21 in particular, which defines what "the Convention rights" are and lists what the Act repealed when it came in. Withdrawal from the Convention itself is not an Act of Parliament at all; it is a notice given to the Council of Europe, which takes six months. The search also turned up section 18 of the European Union (Withdrawal Agreement) Act 2020 as touching the same ground.

What stands in the way: These are two separate legal acts, not one. Repealing the Act does not take the UK out of the Convention, and leaving the Convention does not by itself remove the Act. A programme has to say which it wants, or say that it wants both and in what order. **Part 2.1 sets out the larger problem: whether either removes the rights at all.**

Status: The most attempted of the twelve. A Bill of Rights Bill was introduced in June 2022 and abandoned in June 2023 without ever reaching a second reading. **And there is a Bill before the Commons now** — see Part 2.6.

2 · The Equality Act 2010

What David said: the same sentence as above — *"the Human Rights Act, the Equalities Act"*.

What this appears to mean: Repeal the Equality Act 2010, including the public sector equality duty in section 149.

The law that would have to change: Equality Act 2010, and in particular section 149 (the duty), Schedule 18 (the exceptions to it), Schedule 19 (the list of public bodies it binds), and sections 150 to 157, which exist only

to make section 149 work. Also the Equality Act 2006, sections 31, 32 and 34, which govern the Equality and Human Rights Commission.

What stands in the way: Three things, and all are in Part 6.2. The duty has never applied in Northern Ireland. Most of the working machinery built on it is Scottish and Welsh. And the official Opposition has publicly taken a narrower position than this one.

Status: A Bill to repeal section 149 is before the Commons now. No government review in fifteen years has recommended repealing the whole Act.

3 • The Supreme Court

What David said: *"We formally express the supremacy of the judiciary in Britain by the extraordinary creation of a Supreme Court. How you can have a Supreme Court alongside a sovereign parliament is deranged."*

What this appears to mean: Abolish the UK Supreme Court and send final appeals back to the House of Lords, as before 2009.

The law that would have to change: Constitutional Reform Act 2005, Part 3. The search returned nine separate provisions of that Act, including sections 24, 40 and 148 and six paragraphs across Schedules 1, 9 and 17 — which is a fair indication of how much consequential tidying a repeal would involve.

What stands in the way: Nobody has drafted this. See Status.

Status: ⚠️ **No Bill has been introduced in fifteen years to abolish the Supreme Court and return appeals to the Lords.** Three independent research passes each searched and found none. This measure would be starting from nothing.

4 • The arm's-length bodies

What David said: *"we need to abandon, kill off, privatise or renationalise fully into the structures of government and Parliament, all of these quangos" — and elsewhere, "these 400 or so quangos that are effectively running the country and everything else and sentencing guidance, you name it, advertising standards."*

What this appears to mean: Abolish, privatise, or absorb into departments the several hundred bodies that sit between ministers and the public.

The law that would have to change: There is no single Act. Every body has its own founding statute. The nearest existing tool is the Public Bodies Act 2011, and the search returned six of its sections — 1, 5, 7, 8, 11 and 12 — which are the powers to abolish, merge and modify public bodies by order.

What stands in the way: ⚠️ **The 2011 Act already gives ministers much of this power, and it has been used sparingly.** That is worth knowing before drafting a new one: the obstacle may not be the absence of a power.

Status: Attempted before, in the Public Bodies Act 2011. What happened to that attempt is the most useful precedent available and has not been examined. It should be.

5 • Judicial review

What David said: *"the system Blair created does not work because you know of judicial review of constant intervention by judges of the incompetence of quangos."*

What this appears to mean: Narrow the grounds on which courts can review ministers' decisions.

The law that would have to change: There is no single Act to repeal — judicial review is a creation of the courts, not of Parliament. Restricting it means writing a restriction into whichever Act confers the power in question. The search returned recent examples of Parliament doing exactly that: the Judicial Review and Courts Act 2022 (section 2), the Tribunals, Courts and Enforcement Act 2007 (section 11A), and the Border Security, Asylum and Immigration Act 2025 (section 40).

What stands in the way: ⚠️ **Courts have historically read general restrictions down to nothing.** Since a 1969 case called *Anisminic*, a clause saying "no court may question this decision" has been treated as protecting only lawful decisions — so an unlawful one is reviewable anyway. Recent governments have therefore used narrow, specific clauses instead of broad ones. That is a drafting lesson, not a legal barrier, but it is decisive for how a Bill would be written.

Status: The government's own review — chaired by Lord Faulks KC in 2021 — **looked for systemic judicial overreach and did not find it.** The Judicial Review and Courts Act 2022 followed and made modest changes.

6 • The permanent civil service

What David said: *"the most eminent public figure who passionately opposes the creation of the modern civil service, the Northcote-Trevelyan reforms, is Disraeli."*

What this appears to mean: Reverse the model of a permanent, politically impartial civil service appointed on merit, and return control of senior appointments to ministers.

The law that would have to change: Constitutional Reform and Governance Act 2010, Part 1 — the part that put the civil service on a statutory footing. The search returned ten provisions, including sections 2, 3, 10, 12 and 51 and five paragraphs of Schedule 1.

⚠️⚠️ **What stands in the way — and this is the most important single entry in the register:**

The target David names and the law that exists are not the same thing. David objects to the Northcote-Trevelyan reforms, which date from 1854. The 2010 Act is the modern written-down version of that settlement. **Repealing the 2010 Act would return civil service management to the Crown's own powers, but would leave the 170-year-old convention entirely intact** — and the convention, not the statute, is what actually determines how Whitehall behaves.

The analysis reached the same conclusion independently: the 1854 settlement, which David identifies as the source of the problem, is not what the 2010 Act contains. **That points to where the drafting effort has to go** — at the convention, not only at the statute.

Status: ⚠️⚠️ **No Bill has ever been introduced to repeal Part 1. No government or independent review has recommended it. No developed legal case for it exists.** Three independent research passes each searched and found nothing. And the most senior sympathetic review — Lord Maude's, of November 2023 — reaches the same diagnosis about civil service accountability and expressly keeps the permanent impartial service, on the basis that the alternative brings "delay and discontinuity".

Of the twelve, this is the one with the largest gap between what is said and what would have to be drafted.

7 • The Bank of England

What David said: *"the gross mismanagement of the Bank of England since its complete political independence in 1998."*

What this appears to mean: Reverse the operational independence given to the Bank in 1998.

The law that would have to change: Bank of England Act 1998. The search returned ten provisions — sections 12, 13, 19, 20 and 30F, three paragraphs of Schedule 1, plus section 6 of the Bank of England and Financial Services Act 2016 and section 3 of the Financial Services Act 2012.

What stands in the way: The obstacle is not legal. It is a settled cross-party consensus that independence is what keeps borrowing costs down — and, more awkwardly, the fact that independence lets whichever government is in office avoid blame for interest rate rises. **The people who would have to vote for this are the people it would make answerable.**

Status: David mentions this once in the whole corpus, as a complaint rather than a worked proposal. ⚠️

Confidence that this is intended as one of the twelve is lower than for the others. It is here so David can confirm or remove it.

8 · Diversity and inclusion practice in the civil service

What David said: *"then foisting the whole DEI agenda on the civil service, still worse under her..."*

What this appears to mean: End the diversity, equity and inclusion practice governing civil service recruitment and conduct.

The law that would have to change: ⚠️ **Possibly none.** The practice is administrative, not statutory. The search returned the Equality Act 2010 sections 1, 149 and 153, Schedule 18 and Schedule 26 — the same provisions as measure 2.

What stands in the way: The Institute for Government's published argument is that the public sector equality duty does not require any of the practice complained of. **If that is right, repealing section 149 would not by itself end it, and the lever here is guidance and ministerial direction rather than legislation.**

Status: ⚠️⚠️ **This is substantially the same measure as number 2.** See Part 3 — the two share six provisions of the Equality Act and eight court judgments between them.

9 · Gender self-identification

What David said: *"...you get the beginning with people like Maria Miller and Penny Mordaunt of the beginning of gender self identification for transsexuals."*

What this appears to mean: Reverse the move towards gender self-identification.

The law that would have to change: Equality Act 2010 sections 7 and 11 and Schedule 1; Gender Recognition Act 2004 section 9.

⚠️⚠️ **What stands in the way — this measure may already be delivered:**

Self-identification was never enacted in Great Britain. The Gender Recognition Act 2004 has always required a certificate granted on evidence. And in April 2025 the Supreme Court held, in *For Women Scotland Ltd v The Scottish Ministers*, that "sex" in the Equality Act means biological sex.

The position objected to has been substantially resolved by litigation, in the direction David's Programme wants, without any legislation at all. What remains is a gap between what the law now says and what public bodies are still doing — which is an enforcement problem, not a legislative one.

Status: Resolved by the courts. ⚠️ **This is a finding David and PopCon should welcome and should also find uncomfortable.** It supports the diagnosis — the courts did move. It complicates the remedy — because if the objectionable reading has gone, what is left to repeal?

10 · Publicly funded charities

What David said: *"the charities may most of them are no longer properly independent. They're sock puppets."*

What this appears to mean: Stop charities that receive public money from campaigning against the policy of the body funding them.

The law that would have to change: ⚠️ **David names no instrument, and this matters.** Legislation, the conditions attached to grants, and Charity Commission guidance are all available and produce entirely different results. The search returned Charities Act 2011 sections 2, 3, 4 and 74.

What stands in the way: Nothing legal. The analysis proposed the narrowest route — making the official who signs off departmental spending personally answerable for the grant conditions, rather than creating any new ban. **

Status: Rules already exist. The published analysis is that they are not enforced rather than that they are absent.

11 · The Sentencing Council

What David said: named within the quango complaint — *"sentencing guidance, you name it, advertising standards."*

What this appears to mean: Take sentencing guidelines out of the hands of an independent council and return them to ministers or Parliament.

The law that would have to change: Coroners and Justice Act 2009, section 120 — and sections 19 and 20 of the Sentencing Act 2026.

What stands in the way: The independence was a deliberate design choice in 2009, made to keep sentencing consistent and out of day-to-day politics. Reversing it means arguing that the reason for it was wrong, not that it was an accident.

Status: ⚠️ David names this as an example of the quango problem rather than as a separate measure. It is worked separately so the register can show what a single named body costs to deal with. **Whether it is one of the twelve is a question for David.**

12 · The Great Repeal itself

What David said: *"the campaign for the great repeal and restoration of the legislation passed under the Blair and Brown governments from 1997 to 2010" — and on the standard it must meet: "there's got to be that idea of the great repeal sounds easy. It's not. it will be fought every inch of the way by the whole of that establishment. So it's got to be legally watertight."*

What this appears to mean: One Act repealing the constitutional legislation of 1997 to 2010, passed all at once, because proceeding measure by measure would be defeated by whatever had not yet been reached.

The law that would have to change: ⚠️ **David defines the target by a date range, not by a list of Acts.** That is the first drafting question and it is unanswered. The search returned eleven provisions, spread across the Human Rights Act 1998 (sections 3 and 21), the Constitutional Reform Act 2005, the Victims and Prisoners Act 2024, and six sections of the Legislative and Regulatory Reform Act 2006 — that last one being the existing power to amend legislation by order, which is the nearest tool in the statute book to what an omnibus Act would need.

What stands in the way: The Supreme Court's decision in the first *Miller* case closes the shortcut. Ministers cannot do this with the Crown's own powers; it has to be an Act of Parliament, which means the House of Lords.

And the largest obstacle is stated by the Programme's own side. Lord Wolfson KC, the Shadow Attorney General, wrote in October 2025 that leaving the Convention and repealing the Human Rights Act "*would not amount to a 'factory reset' of UK law*" and that achieving anything like that "*would involve a complicated legislative programme aimed at rolling back case law and relevant legislative provisions.*" **That is a description of a document nobody has yet written.** Part 2.1 is a first attempt at what it would contain.

Status: Never attempted at this scale. **Part 3 tests the claim that the measures must move together, and finds it is not supported in the way David's Programme assumes.**

The problem underneath all twelve

At the heart of the Starkey Thesis is one core problem: **Parliament is not sovereign, and should be.** That is the problem to which the Thesis is the solution.

If that correctly states the problem — and it aligns David firmly on the political-constitution side of the political/legal constitution debate — then the solution goes further than simple repeal of legislation. It suggests the entire machinery of government needs to be modified, so that accountability and responsibility for all government action flows through the elected representatives, in a way that allows the voting public to reward success and punish failure.

This paper is focused solely on David's programme of repeal and its implications.

PART 2

ACROSS THE WHOLE PROGRAMME

This is the question the whole programme turns on. If repealing the Human Rights Act leaves the rights in place, then repeal is not the mechanism, and everything downstream changes.

David's claim, put plainly: repeal is not enough, because the courts have absorbed the Convention into ordinary English law. Repeal would leave the substance standing. Something stronger is needed.

David is right — and the confirmation comes from David's own side

Lord Wolfson KC, the Shadow Attorney General, in advice to the Leader of the Opposition dated 2 October 2025, at paragraph 345:

"It is, however, clear that leaving the ECHR and repealing the HRA would not amount to a 'factory reset' of UK law to its state pre-ECHR and pre-HRA; to achieve anything like that would involve a complicated legislative programme aimed at rolling back case law and relevant legislative provisions."

That is David's central claim, reached independently, by the most senior lawyer on David's own side of the argument.

It is quoted here from the published version. The document carries a confidentiality marking on every page but was published by the Conservative Party and reported widely; no privileged access to it is claimed or implied.

Why repeal does not restore 1997

Two lines of court decisions carry it, running in opposite directions from 1998.

Before the Act, English law already protected several of these rights on its own. Natural justice in *Ridge v Baldwin* (1964). Access to the courts in *ex p Leech* (1994) and *ex p Witham* (1998). Freedom of expression in *Derbyshire County Council v Times Newspapers* (1993), decided expressly on ordinary common-law grounds. And in *ex p Simms* (2000), Lord Hoffmann held that fundamental rights cannot be taken away by vague or general words in a statute — a rule of interpretation that owes nothing to the Human Rights Act.

Since 2013 the Supreme Court has repeatedly said that a rights question starts with English law, not with the Convention. *Osborn v Parole Board* (2013), *Kennedy v Charity Commission* (2014), *A v BBC* (2014), *Pham* (2015).

The clearest single example is R (UNISON) v Lord Chancellor (2017). Employment tribunal fees were struck down on the ordinary common-law right of access to justice. The Convention argument was secondary. Nothing in that decision depends on the Human Rights Act, and it would stand unchanged if the Act had never been passed.

But the absorption is uneven, and that cuts against David

In *Moohan v Lord Advocate* (2014) the Supreme Court declined to find a common-law right to vote. **So the common law is not simply a copy of the Convention.** It is strong on access to justice, natural justice and interpretation; thin or absent elsewhere.

⚠ A programme built on the assumption that ordinary law now replicates the Convention across the board would be built on a misreading — one that runs in David's favour. Which rights are actually absorbed has to be tested right by right, and has not been.

And one finding David will not have expected

Wolfson notes that the Convention's influence has *expanded* common-law protection rather than reduced it — because where English law already went further, there was no reason to cut it back to Convention level.

So leaving the Convention cannot mechanically shrink the common law back down. There is no reverse gear. Whatever is to be rolled back has to be rolled back deliberately, by legislation, naming what it is displacing.

And a limit on the remedy hiding in the same paragraph

Wolfson says the Convention's influence on English law is so widespread that **it would be impossible to give a complete account of the law affected.**

Read that carefully. It confirms the diagnosis and simultaneously limits the cure: **if no complete list can be made, no programme can claim to have rolled all of it back.** Any list — including one this platform could produce — is necessarily partial and must say so. A declared partial list is useful. An undeclared one would be exactly the defect this document exists to avoid.

It is essential, at the level of the individual measure, to lay out precisely what the problem is, not just the solution. Until we know what problem a piece of legislation is causing, we can have no confidence that repeal is an effective remedy, and no principle by which to judge which elements of absorption need to be included in David's Programme.

David's answer to the absorption problem is not repeal but **annulment**: declaring the provisions never to have had effect, on the model of Henry VIII's marriage annulments.

The answer is that it does not reach the problem David has identified, and this is the finding most likely to be unwelcome.

It aims at the wrong target

Declaring a statute never to have had effect reaches **the statute**. The problem David has identified lives in **the case law**.

Where a court has held that *the common law* protects a right, that holding never depended on the statute in the first place — so removing the statute does not remove the holding. *UNISON* is the demonstration: annul the Human Rights Act tomorrow and *UNISON* still stands, because it was not decided under it.

Repeal leaves the judicial reasoning in place. Annulment leaves it in place too. David's diagnosis and David's remedy do not meet.

The comparison is doing more work than it can bear

Annuling a marriage is a decision about the status of one relationship. Annuling a statute would operate on everything done under it across twenty-seven years — convictions, damages, decisions quashed, other statutes reinterpreted. Either those are saved, in which case it is not an annulment; or they are unpicked, which is not achievable.



But here the record turns back in David's favour, and this is the most useful thing in Part 2

The received wisdom is that clauses excluding the courts always fail. In *Anisminic* (1969) the House of Lords read a total exclusion down to nothing. In *Privacy International* (2019) the Supreme Court did the same to a modern one.

That wisdom is now out of date. In 2022 Parliament drafted an exclusion clause that worked.

Section 2 of the Judicial Review and Courts Act 2022 removed judicial review of certain tribunal permission decisions. It was upheld in *Oceana* (2023) and by the Court of Appeal in *LA (Albania)* (2023).

Four reasons it survived, and they are transferable:

11. **It was partial, not total.** Review was kept for serious jurisdictional error, fundamental breach of natural justice, an improperly constituted tribunal, and bad faith. A court asked to accept a complete exclusion refuses. A court asked to accept a bounded one need not.
12. **It closed the escape route expressly**, by bringing "purported" decisions inside the clause — the exact device *Anisminic* used to get round the 1950 wording.
13. **It restored a standard the courts had themselves preferred**, rather than inventing a new one.
14. **The body protected was an expert judicial one**, not a minister.



The lesson is precise, and it is not the one David has drawn. The device that worked was narrow, surgical and drafted around the known failure. The devices that failed were broad and declaratory. **Annulment, as described, is a broad declaratory device.**

The programme's difficulty is not that its aim is unachievable. It is that the mechanism named for it is aimed at the wrong target.

Within about a year, four documents on the same side of this argument have proposed **four different ways** of doing it. They agree on the diagnosis and disagree on the remedy.

	Who	What they propose	Timing
1	Starkey	Annul — declare the provisions never to have had effect	One Act, all at once. Sequential change is defeated by the remainder
2	Prosperity Institute (Braverman and Dampier, Sept 2025)	A Case Law Review Commission with a deadline, keeping some Strasbourg case law; annual correction Bills	Two Bills, six-month transition
3	Lord Wolfson KC (advice to the Leader, Oct 2025)	Seven options, and he declines to choose between them , saying the choice is political and outside the scope of legal advice	Six months' notice under Article 58
4	Lord Sumption (Nov 2025)	Leave the Convention, keep the substance — re-enact the same rights in an ordinary domestic statute	Not specified

⚠️ The finding: two of them recommend opposite things

Wolfson warns against a new Bill of Rights modelled on the Convention. Sumption proposes exactly that.

A former Justice of the Supreme Court and the Shadow Attorney General, writing within weeks of each other, both persuaded the present position is untenable, reach **opposite conclusions about the replacement**.

What turns on it: if Sumption is right, withdrawal is a change of *forum* — the rights survive in domestic form and the argument is about who interprets them. If Wolfson is right, a Convention-shaped domestic instrument brings the problem straight back in, so withdrawal has to be a change of *substance* too.

They produce entirely different Bills. A programme that has not chosen between them cannot be drafted at all.

Sumption's diagnosis, and why it matters most

His objection is precise, and it is **not to the words of the Convention**. He says he has no problem with the text. His objection is to the Strasbourg court's practice of treating it as a "living instrument" — expanding the text by analogy to produce a large number of new rights. He calls this "an essentially legislative process" and "a usurpation of the function of democratic legislatures."

And then this:

“We do not need the Human Rights Convention in order to protect human rights.”

That is section 2.1's proposition, stated by a man who sat on the court David's Programme proposes to abolish.

⚠️ **But note what he does with it, because it is the opposite of what David's Programme does.** For Sumption the conclusion is that the rights can safely be brought home — the protection does not depend on Strasbourg. For David's Programme, the conclusion is that the rights have taken root and must be pulled up. **Same premise, opposite remedy.** The premise is not in dispute. What to do about it entirely is.

The strongest case against, stated fairly

Dominic Grieve KC, former Attorney General, accepts the starting point: if the UK left the Convention but kept the Human Rights Act as a domestic bill of rights, rights here **"would continue to be pretty well protected."**

⚠ **That is a significant concession and it should be printed**, because it means the domestic-protection argument is common ground across every serious figure in this section.

His objection is that domestic protection was never the point. The Convention was joined to raise standards elsewhere in Europe and to show willingness to be bound. He lists specific consequences of leaving:

- The **UK-EU Trade and Cooperation Agreement** would be put at risk
- **Horizon** participation would become impossible, because the data-sharing it requires rests on shared Convention adherence
- **Northern Ireland**, where he argues Convention adherence is written into the Belfast/Good Friday Agreement both explicitly and implicitly
- On frequency: since the Brighton Declaration of 2012, which he negotiated, adverse judgments breaking new ground have been very rare — on his recollection, two in the last year

⚠ **That last point is checkable and should be checked**, because it is doing real work. If adverse judgments are as rare as he says, the practical case for leaving rests on their severity rather than their number.

And note a fifth option hiding in his answer: leave the Convention but keep the Human Rights Act as a purely domestic instrument. Nobody among the four proposes it, and it is closer to Sumption's position than to any of the others.

Two balance points, recorded without comment

- **Wolfson told the House of Lords in 2023 that he supported UK membership of the Convention.** His advice of October 2025 reaches a different conclusion. ⚠ *To be checked against Hansard, not against anyone's characterisation, before this is relied on.*
- **There is an internal Conservative counter-position** from the Conservative European Forum, whose president is Sir David Lidington. The Forum reports that Wolfson said his advice should be reconsidered if meaningful reform of the Convention system were achieved. ⚠ *That is the Forum's account. It must be checked against the advice itself. If it holds, it is a significant qualification the other three documents do not carry.*

What the technical discussion leaves out

What is missing from a purely technical discussion of repeal is the purpose driving it. The central problem is that the rights of criminals, illegal immigrants and terrorists are being protected without any consideration for the costs to, and the rights of, the victims, the existing citizens of the country, and the soldiers on whom our security depends.

Solving that problem is not about shuffling rights between jurisdictions. It means removing the existing structures entirely, so that they can be rebuilt around the proper and rightful set of priorities.

A Westminster repeal programme does not stop at Westminster, and this is the part of David's Programme with the least published work behind it.

The convention that gets in the way

Under what is called the **Sewel convention**, Westminster does not normally legislate on matters devolved to Scotland, Wales or Northern Ireland without the consent of the relevant parliament or assembly. It is a convention, not a law — the Supreme Court confirmed in the first *Miller* case that the courts will not enforce it.

So consent can be refused and Westminster can proceed anyway. What that costs is political, not legal, and it is a cost David's Programme has to be willing to pay knowingly.

 **The most authoritative legal analysis of ECHR withdrawal does not address this at all.** The word "Sewel" does not appear in Lord Wolfson's advice, and neither does the Government of Wales Act. The nearest thing to an answer is a drafting instruction at his paragraph 374: that a manifesto should specify the UK would leave and repeal the Act **irrespective of the stance of devolved administrations.**

That is a political answer to a political problem, and it is a legitimate one. But it means the detailed work of amending the three devolution statutes has not been done by anyone.

The three statutes

The Human Rights Act is written into the founding legislation of all three devolved administrations. Repealing it without amending them would leave three statutes referring to an Act that no longer exists.

- **Scotland Act 1998** — section 29(2)(d) puts Convention rights beyond the Scottish Parliament's competence, and section 57(2) does the same for Scottish Ministers
- **Government of Wales Act** —  *the exact provision is disputed between the reading taken here and the Prosperity Institute's, and is not settled. Both are named rather than one chosen.*
- **Northern Ireland Act 1998** — sections 6 and 24 and Schedule 2

 **The Northern Ireland position is different in kind, not just in detail**, because Convention adherence is bound up with the Belfast/Good Friday Agreement — an international treaty with Ireland, not just a domestic statute.

The two expert camps on Northern Ireland, and they disagree

Neither side is obviously right, and this document does not adjudicate between them.

- **Policy Exchange** (Conor Casey, Richard Ekins and Sir Stephen Laws, 2025) argue that withdrawal would not itself breach the Belfast Agreement, though some domestic rights protection would still be needed in Northern Ireland.
- **Northern Ireland public lawyers** including Aoife O'Donoghue and Colin Murray, with the Committee on the Administration of Justice, argue that Convention incorporation is deeply embedded in the Agreement's architecture and that withdrawal creates significant treaty consequences.

 **And the two documents on the Programme's own side contradict each other on this.** Wolfson relies on the Northern Ireland Court of Appeal in *Re Dillon* holding that the Convention falls outside Article 2 of the Windsor Framework, so there is no obstacle. The Prosperity Institute treats Article 2 as a live obstacle requiring primary legislation. **Incompatible readings of the same case law, published a month apart, on the same side.** An appeal to the Supreme Court is pending.

The Equality Act does not apply in Northern Ireland

This is the clearest example of why the register's entries matter: a Bill repealing a duty that was never in force there changes nothing.

The Equality Act 2010 does not extend to Northern Ireland, apart from three specified provisions — section 82 (offshore work), section 105(3) and (4), and section 199. Equal opportunities and discrimination are devolved matters.

Section 149 is not among the three. The public sector equality duty has never applied in Northern Ireland. A Westminster Bill repealing it would change nothing there.

The nearest equivalent is **section 75 of the Northern Ireland Act 1998**, which arises from the Belfast/Good Friday Agreement and came into force on 1 January 2000. ⚠ **It is an analogue, not an equivalent:**

- It has **two duties of different strength** — "due regard" to promoting equality of opportunity, and the weaker "regard to the desirability" of promoting good relations, across only three of the grounds. Section 149 has one standard throughout.
- **It is enforced completely differently** — through equality schemes approved by the Equality Commission for Northern Ireland, with screening and impact assessments. Section 149 has no such machinery and is enforced by people going to court.

⚠ **So if the objective is to remove public-sector equality duties across the United Kingdom, section 75 of the Northern Ireland Act 1998 is a separate target — and it is not on the list.** Because it derives from the Belfast Agreement, it is a materially harder one. That is a question for David, not a conclusion of this document.

One more thing falls out of the same section. The Equality Act does not apply uniformly even across Great Britain: section 190 and Part 15 do not extend to Scotland. **The Act is already a patchwork, and a repeal Bill has to be drafted against the patchwork rather than against the Act's title.**

Once again, it is critical that the problem the repeal is meant to solve is stated with clarity. Only with a clear expression of the problem can the fine judgements and choices about the solution be made. **This is the central task of the proposer.**

This is not a literature review and does not claim to be complete. It is what a competent searcher finds quickly, set out so David can say what has been missed.

On the Human Rights Act — the best-covered measure by a distance

Who	Position
Lord Wolfson KC , Shadow Attorney General	Withdrawal justified; warns against a new Bill of Rights modelled on the Convention; says leaving would not be a "factory reset"
Lord Sumption , former Supreme Court Justice	Objects to Strasbourg's expansive interpretation, not to the text; would replace it with a domestic instrument that looks much the same
Prosperity Institute (Braverman and Dampier)	Withdrawal plus a Case Law Review Commission under a deadline
Dominic Grieve KC , former Attorney General	Against withdrawal — but concedes domestic protection would survive it

Still unworked and worth having: Sumption's 2019 Reith Lectures and *Trials of the State* argue at length that law has expanded into territory belonging to politics. ⚠️ **That is the Programme's own diagnosis, made from the bench, six years before David's Programme.** It is the single most useful piece of corroboration available.

On the Equality Act — two findings that change what the register has to say

The repeal of section 149 is already announced Conservative policy. Badenoch, in a speech at the Institute for Government on 9 June 2026, said:

"That's why I can announce today that a Conservative government will repeal the Public Sector Equality Duty in its entirety. We do not need to replace the duty."

And she drew the distinction herself, naming the alternative:

"Reform... announced that they would abolish the entire Equality Act. So let me be clear, that would mean that it would be legal to discriminate against white people."

"The Equality Act protects a white man as much as a black woman. But the Public Sector Equality Duty does not. That's why we are going to overhaul the Act, starting by removing this Duty."

⚠️ ⚠️ **That puts three positions on one line, and David's Programme is at the far end of it:**

Position	Whose
Repeal the duty, keep the substantive protections	Conservative
Abolish the entire Equality Act	Reform UK
Repeal the Equality Act	The programme, on this reading

The programme's position is nearer Reform's than the Conservatives', and the Leader of the Opposition has publicly argued against it by name. That is a fact about the landscape a Bill would be drafted into, not a view about who is right.

The strongest published rebuttal came two days later: the Institute for Government (Stuart Hoddinott and Cassia Rowland, 11 June 2026) argue the duty does not require equality of outcomes or positive action, that frontline staff do not name it as a barrier, and that repeal misdiagnoses the problem.

Second finding: part of what David's Programme objects to has already been decided by the courts. See register entry 9 and Part 6.2.

On the civil service — the measure that looked thinnest, and is not

Lord Maude of Horsham's **Independent Review of Governance and Accountability in the Civil Service**, published 13 November 2023, examines exactly the question David's Programme raises.

⚠️⚠️ And it does not reach the Programme's conclusion. The review states that it proceeds "on the basis that the UK's current system of a permanent and politically impartial Civil Service will be maintained." It proposes major changes to governance and appointments and **stops short of the remedy.**

That makes it the hardest document in this report for that measure, and hard in a more useful way than opposition would be. Maude is a former Cabinet Office minister and one of Whitehall's most persistent critics. He reaches the same diagnosis and stops. **The question it puts is not "are you right?" but "what does Maude know that makes him stop where he stops?"**

Responses to it exist across the spectrum and are all findable: the Institute for Government, the UCL Constitution Unit ("institutional fixes for political problems"), and Re:State.

⚠️ The UCL framing is the one David's Programme most needs to answer, because it is the strongest available objection to its whole method: that changing institutions does not fix problems that are political in origin.

Note

In one recorded talk the transcript has David referring to "*the secretary of the First Division Civil Servants Association, Mark Sirota*". Mark Serwotka led the PCS union, not the FDA, whose general secretary is Dave Penman.

This may be the transcription mishearing rather than the speaker mis-speaking. It is flagged because a report quoting it uncorrected would put an error into David's mouth — and because if it is David's error rather than the machine's, David would rather know.



The report treated "what was tried before" as a historical question. It is not. **Two Bills are before the House of Commons now which do, in narrower form, two of the twelve things David's Programme proposes. Both are sponsored by Conservative MPs.**

Bill	Sponsor	What it does	Where it is
European Convention on Human Rights (Notification of Withdrawal) Bill	Mike Wood MP (Kingswinford and South Staffordshire)	Gives the Prime Minister power to notify withdrawal from the Convention under Article 58	First reading 22 June 2026. Second reading listed for 11 September 2026
Public Sector Equality Duty (Repeal) Bill	Joy Morrissey MP (Beaconsfield)	Repeals section 149 and Schedule 18 of the Equality Act 2010, with consequential provision	First reading 22 June 2026. Second reading listed for 5 March 2027

What this means in practice, stated carefully

Both are Presentation Bills. A backbencher can present a Bill without a debate, and it goes into a queue. Bills of this kind rarely reach a substantive second reading and almost never become law without government time. Parliament's own website marks forward dates as provisional.

Neither is a drafted Bill. Each is a long title granting a power, with no text behind it — a skeleton to be filled in if it ever progresses.

So this is not a prediction that either will pass. What it is, is this: **the drafting question David's Programme has not yet answered has already been answered twice, by other people, in the form of actual long titles.**

 **And neither Bill has any published text.** Parliament's page for each records: *"There are no publications for this Bill yet."* They state an intention and no mechanism. **That is why the work in Part 6.2 is not duplicating anyone — the consequential detail has not been written by anybody.**

The three long titles answer the question differently

- **Wood's Bill takes withdrawal only.** It does not repeal the Human Rights Act. That is the "change of forum" option.
- **Morrissey's Bill takes section 149 and Schedule 18 only.** It does not touch the Act's substantive anti-discrimination provisions.
- **On this reading David's Programme takes the whole Act in each case.**

These are the narrowest available versions of two of the Programme's measures, and they are the ones that have reached the Order Paper.

The counter-movement, also live, and with government time behind it

Bill	What it does	Where it is
Public Office (Accountability) Bill — a Government Bill, from a Labour manifesto commitment	Creates a statutory duty of candour on public authorities and officials, new criminal offences, and codes of ethical conduct; replaces the common-law offence of misconduct in public office	Commons third reading 14 July 2026; Lords second reading 1 September 2026

⚠ **This runs in precisely the opposite direction to David's Programme, and it is the one with government time.** Where the Programme would take civil service management back to the Crown's own powers, this Bill adds statutory duties to officials. **A programme that repeals the 2010 Act while this is on the statute book has to say how the two fit together** — and if it becomes law first, it is a thirteenth thing to unwind rather than a twelfth.

Earlier attempts, verified

Attempt	What happened
Bill of Rights Bill 2022 (Dominic Raab) — would have repealed the Human Rights Act and replaced it, staying in the Convention	Introduced 22 June 2022; paused; abandoned 27 June 2023. Never reached a second reading
Peter Bone MP, British Bill of Rights and Withdrawal from the ECHR Bill 2022-23 — withdrawal <i>plus</i> a domestic Bill of Rights, the closest earlier match to David's Programme	First reading 20 June 2022. No further stage recorded
Nigel Farage MP , ten-minute-rule motion on withdrawal, 29 October 2025	Ayes 96, Noes 154. Rejected; no Bill resulted

⚠ **That division is the only hard number in this report on how the present House of Commons votes on withdrawal.** 96 for, 154 against, on a thinly attended vote. It is not a forecast. It is the only sounding taken.

The programme is a proposal to undo something. This section sets out what that something was, what the people who built it said they were doing, and whether they intended the result.

! A note on sourcing. This section draws on published books, official papers and parliamentary records. Because it deals with intellectual history rather than the statute book, much of it comes from named published work rather than from a search of the law. **Every item carries a mark:**

- [verified] checked against the source
- [corroborated, unchecked] — named independently by more than one research pass, not yet checked against the source
- [single mention, unchecked] — named once only; a lead, not a citation

What was built

Six things, over thirteen years, by different hands and for different stated reasons.

Year	What	What it did
1998	Human Rights Act	Made Convention rights enforceable in UK courts, with a deliberately weak remedy — a declaration of incompatibility that changes nothing legally
1998–99	Devolution statutes	Scotland, Wales, Northern Ireland — each with Convention rights written into the limits of what the devolved bodies may do
2005	Constitutional Reform Act	Took the Lord Chancellor out of the judiciary, created the Judicial Appointments Commission, and moved the final court out of the House of Lords
2009	Coroners and Justice Act	Created the Sentencing Council as an independent body
2010	Constitutional Reform and Governance Act, Part 1	Put the civil service on a statutory footing — the Civil Service Code, merit recruitment, and the Civil Service Commission
2010	Equality Act	Consolidated earlier discrimination law and added the public sector equality duty

! They were not one project. Different departments, different ministers, different arguments, spread over more than a decade. **Treating them as a single design is the first thing a critic will attack**, and the Programme's own case is stronger if it argues that the *effect* was cumulative rather than that the *intent* was coordinated.

What can be said is that all of them were fed by, and driven by, the same twin ideological fashions: **to move decisions away from flawed, compromised and "corruptible" elected politicians to independent "experts" separated from political influence**; and a belief that **"more state"** is always, or almost always, the answer to any problem.

What the architects said they were doing

This is where the record is clearest, and it does not say what the Programme's stronger version assumes.

On rights. The 1997 white paper was called *Rights Brought Home* [corroborated, unchecked]. Its stated purpose was to let people enforce Convention rights in British courts instead of spending years and large sums going to Strasbourg. The Convention was presented as a British-drafted instrument the UK had helped write.

⚠️⚠️ **And the sovereignty question was not overlooked — it was the central design problem.** Jack Straw's Second Reading speech on 16 February 1998 [corroborated, unchecked] is the primary source. He said the most fundamental question was how to incorporate the Convention while *strengthening* rather than undermining parliamentary sovereignty, expressly rejected giving courts power to set aside Acts of Parliament, and said:

| "The sovereignty of Parliament must be paramount."

⚠️ **Named by two independent passes with that quotation. It is Hansard-checkable and should be checked before it is quoted in a printed document — but if it holds, it is decisive for what follows.**

That is not retrospective justification. It is the contemporaneous ministerial explanation of the architecture — and the declaration of incompatibility, which deliberately changes nothing, is the mechanism that was chosen precisely to preserve Parliament's last word.

On the courts. The 2005 reforms were announced in a June 2003 reshuffle, not after a royal commission [corroborated, unchecked]. **That origin is itself part of the argument:** a change to the highest court in the land, made without a commission, without a green paper, and announced alongside a ministerial reshuffle.

Lord Bingham argued publicly for it in *The Times* in June 2003 [corroborated, unchecked], on the ground that judges sitting in the legislature was an anomaly. **What he wanted was explicitly not the American model** — a court that could not strike down Acts of Parliament.

⚠️ **And Lord Irvine, the Lord Chancellor removed by the same reshuffle, opposed both the abolition of his office and the creation of the court** [corroborated, unchecked], and later said the decision was taken without proper advice. **The strongest contemporaneous criticism of the 2005 Act came from inside the government that made it.**

On the civil service. The 2010 Act completed a debate running since the 1990s. **Its stated aim was to lock existing Northcote-Trevelyan values into statute so that a future government could not quietly unpick them by Order in Council** [corroborated, unchecked].

⚠️ **Note what that means for the Programme's sixth measure.** On this account the 2010 Act **codified** rather than created. Repealing it returns the position to what it was in 2009 — which was not a patronage system.

Bingham himself, and why he is misread by both sides

Lord Bingham was Master of the Rolls, Lord Chief Justice and Senior Law Lord — the only person to have held all three offices. *The Rule of Law* (2010) [corroborated, unchecked] is the book David's Programme is arguing against, and David has written about it directly, in *Bingham's failed revolution*, *The Critic*, March 2025 [verified].

Bingham's conception is deliberately a "thick" one: not merely that government follows the rules it enacts, but that fundamental rights are protected, that officials act lawfully, that courts adjudicate fairly — and, in his eighth principle, **that the state complies with its international legal obligations as with its national law.**

⚠️⚠️ **That eighth principle is the crux. It is the single most concise statement of the position David's Programme attacks,** and it is where the argument should be joined.

But there is a qualification both sides routinely lose. Bingham did not conclude that Parliament had ceased to be sovereign. His book contains an extended treatment of the rule of law and parliamentary sovereignty,

and in a 2008 journal article [corroborated, unchecked] he rejected the suggestion — made by some judges in the *Jackson* case — that courts might one day refuse to apply an Act of Parliament.

His thesis is that a sovereign Parliament ought to legislate consistently with deeper principles. It is not that judges acquire power to stop it.

⚠️ A well-informed critic will use Bingham against the Programme's stronger version, and a proponent who has treated him as the patron saint of judicial supremacy will be caught out. **The accurate criticism of Bingham is not that he claimed too much power for courts. It is that his eighth principle makes international obligation part of the rule of law itself — which is a much more interesting argument, and a harder one.**

⚠️⚠️ Was "government by unaccountable experts" intended?

The documentary answer is: partly yes as to independence, no as to supremacy — and the distinction is what the whole dispute turns on.

These were deliberate design objectives, stated at the time:

- Judges should not owe appointment or promotion to political patronage
- Civil servants should be recruited on merit and serve successive governments
- Rights should constrain public authorities regardless of electoral popularity
- Equality considerations should happen before decisions, not only through later claims

These were not: transferring ultimate legislative authority to judges. The refusal to permit strike-down was designed to prevent exactly that, and it is on the record.

So the weak version of the Programme's historical claim is well supported and the strong version is not.

⚠️⚠️ And the serious version of the case is better than either, because it does not depend on intent at all:

You need not formally give judges sovereignty for legal constraint to displace political choice. If Parliament legislates through broad concepts — proportionality, necessity, reasonable justification, due regard — and courts progressively determine what those words mean, then substantial political decisions migrate into adjudication, even though Parliament technically retains the power to reverse any of it.

That proposition does not require anyone to have intended anything. It is a claim about what happens when vague standards are put into statute, and it is testable against the record measure by measure.

It is also the version this document's own findings support. Part 6.2 shows exactly that mechanism at work: a duty to have "due regard", whose content only a court can settle after the fact.

⚠️ Recommendation: this is the strongest available framing of the Programme's historical case, and it is what the serious literature actually argues. It is offered as an option, not urged.

What was done about it before, and what happened

The programme is not starting a new movement. Since about 2010 governments and Parliament have repeatedly tried to restore political discretion, and the results are instructive.

Attempt	Outcome
Commission on a Bill of Rights, 2012 •	Split. Majority favoured a domestic bill of rights while staying in the Convention ; two members dissented
Independent Review of	Commissioned to find judicial overreach. Found none systemic.

Attempt	Outcome
Administrative Law (Lord Faulks), 2021 ●	Recommended modest procedural change
Judicial Review and Courts Act 2022 ✓	Enacted. Modest — but it contains the one court-exclusion clause that worked. See Part 2.2
Independent Human Rights Act Review (Sir Peter Gross), 2021 ●	Government-commissioned, retired appeal judge in the chair, a former First Parliamentary Counsel on the panel. Recommended keeping the Act
Bill of Rights Bill 2022 ✓	The only real legislative attempt. Abandoned 2023 without a second reading
Retained EU Law (Revocation and Reform) Act 2023 ●	Removed the supremacy of EU law in domestic interpretation. ⚠️ Its sunset clause — the model the Prosperity Institute's Case Law Review Commission is drawn from — was abandoned before Royal Assent
Safety of Rwanda (Asylum and Immigration) Act 2024 ●	⚠️⚠️ The closest thing to the Programme's method actually enacted. Disapplied specific sections of the Human Rights Act for a defined class of decision, and directed courts to treat a factual question as settled
Farage ten-minute-rule motion , Oct 2025 ✓	Ayes 96, Noes 154
Wolfson advice and Conservative policy , 2025 ✓	Withdrawal adopted as party policy
Wood and Morrissey Bills , 2026 ✓	Before the Commons now — see Part 2.6

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

⚠️⚠️ **The Safety of Rwanda Act is the most important row in this table and David's Programme should study it closely.** It is the method — disapply named provisions for a named purpose — executed at small scale. **What it cost politically, how the courts handled it, and whether it achieved its object are the best available evidence about the Programme's own method**, and nobody appears to have used it that way.

And the pattern across the table is worth stating plainly: every broad attempt failed, and every narrow one succeeded. That is the same finding as Part 2.2, arrived at from a completely different direction.

PART 3

DO THE TWELVE HAVE TO MOVE TOGETHER?

The programme's central structural claim is that they do. Undo any one, and the others are still standing to reproduce the effect complained of — so a government proceeding one Bill at a time will be defeated by whatever it has not yet reached. **That is the argument for one omnibus Act, and everything about delivery follows from it.**

It is tested here, three ways.

The analysis was run twelve times, once per measure, **each run blind to the other eleven.** No run was told what any other run found. That matters for reading what follows: where twelve independent runs converge, the convergence means something, because it was not designed in.

! What follows is a test, not a verdict. Its limits are at the end and they are real.

Test one: do the measures touch the same law?

If the measures interlock as claimed, the twelve runs should keep landing on the same Acts.

Across all twelve, 23 Acts of Parliament were cited. Nineteen were cited by exactly one measure.

Act	Measures touching it
Equality Act 2010	Equality Act · DEI · gender self-ID — three measures
Equality Act 2006	Equality Act · DEI
Constitutional Reform Act 2005	Supreme Court · Great Repeal
Human Rights Act 1998	HRA · Great Repeal

And at the level of individual sections, **seven shared provisions in the entire programme** — six of which are the same pair of measures.

Strip out the two overlaps that are David's Programme restating itself (the Great Repeal contains the other measures by definition) **and the entire cross-measure overlap in the statute book is three measures sharing the Equality Act.**

!! Finding one: three of the twelve measures are one measure

The Equality Act, DEI practice in the civil service, and gender self-identification all converge on the same statute. The first two share **six sections and eight court judgments** between them.

This was not designed in. The three were built separately, from separate statements of David's, on separate days. **They converged because the law does.**

What that means practically:

- **DEI has no separate legislative existence.** Its evidence is the Equality Act measure's evidence. Drafted as a distinct Bill it either duplicates the Equality Act repeal or contradicts it.
- **Gender self-identification is resolved by litigation rather than legislation,** and what remains of it sits inside the same Act.
- **So this is one workstream with three faces, not three measures.**

! The programme is more accurately described as ten measures than twelve. It removes two Bills from a programme whose main constraint is parliamentary time.

! Finding two: outside that cluster, the measures are markedly separable

Nineteen of twenty-three Acts are touched by one measure only. The Bank of England Act appears in the Bank of England measure and nowhere else. The Sentencing Council's founding provisions appear in that measure and nowhere else. The charities framework appears in the charities measure and nowhere else.

On this evidence, most of David's Programme could be legislated one measure at a time without the remainder defeating it — which is the opposite of the claim the omnibus Act rests on.

!!! **This is the weaker of the two findings and must be read with its limit attached.** Absence of shared citations is not absence of dependency. Two measures can be deeply interdependent without citing the same Act — through convention, through institutional practice, or through something the search had no reason to look for. **Each run was asked about its own measure. Nothing was hunting for cross-links.**

So this is evidence that the measures are separable in the statute book. It is not proof that they are separable in politics. The first finding is strong because convergence was not designed in. The second is suggestive because nothing was looking for it. Both are stated at their true weight.

Test two: where the courts join measures the statute book does not

Ninety judgments were cited across the twelve runs. Seventeen appear in more than one measure — **and the groupings do not follow the statutory ones.**

Shared	Measures	What the shared cases are about
3 judgments	Quangos · civil service · DEI	What public authorities may lawfully do, and who answers for it
8 judgments	Equality Act · DEI	The Equality Act cluster again
4 judgments	Quangos · civil service	Delegated decisions and lawful authority
<i>For Women Scotland</i>	Supreme Court · gender self-ID	The Court doing the thing David's Programme wants done

!!! **The quangos / civil service / DEI cluster is a real interlock that the statute book does not show.** Those three share no Act at all, but they share judgments about what public bodies may lawfully do and who is accountable for it. **That is the accountability question underneath all three** — and it is the strongest evidence in this document *for* the Programme's structural claim. It was found by the courts, not by the drafters.

So the honest answer to "do they interlock" is: not through the statutes, and partly through the case law. Which is the same observation as Part 2.1: **what binds these measures together lives in the judgments, not in the Acts.**

!!! Test three: where the analysis disagreed with David's Programme

The twelve runs were not asked to agree. **On four of twelve measures the analysis proposed a different remedy from David's**, in its own drafted plan, having read the record.

These split into two classes, and the difference matters.

(a) Reached on material not supplied

Measure	David's remedy	What was proposed instead
Bank of England	Reverse operational independence	It diagnosed the 1998 Act as having " <i>reclassified the inherently political and distributional choices of monetary policy as a technical exercise</i> ". Its alternative is to attack the legitimacy of the consensus rather than the Act: make ministers argue in public that interest rates are a political choice, so that the case for taking the decision back is won before the law is changed
Charities	Stop publicly funded charities campaigning	"Fix accountability for the funding decision with the grantor, not by creating a new blanket ban". Its alternative reaches the same result without legislation: the accounting officer who signs off the grant is already personally answerable for the spending, so attach the campaigning condition to the grant and the existing accountability does the work

 **Neither alternative was seeded** — that is, neither was put into the analysis as an input. For the Bank, only the Act that conferred independence was supplied. For charities the available instruments were supplied, but not any preference between them, because David names none.

Charities is the sharper of the two. Given a measure with no stated instrument, the analysis did not invent one for David. It found where the accountability actually sits and proposed the narrowest thing that would reach it.

(b) Where the counter-material was supplied, and built on

Measure	What the analysis did with the counter-evidence
Civil service	Opened on the target: " <i>The obstacle is not the Constitutional Reform and Governance Act 2010...</i> " — then proposed forcing a direct argument about the 1854 settlement, instead of a repeal it calls legally ineffective
Gender self-ID	Opened on <i>For Women Scotland</i> having settled the meaning of "sex" in the Equality Act, and proposed using existing powers to enforce the law as it now stands — no new legislation at all
Judicial review	Opened on the government's own review " <i>finding no systemic judicial overreach</i> " before setting out the case anyway.  Note that a process does not have to amount to systemic overreach to be abused, or to impose unnecessary cost and delay — and that is the case the measure actually rests on
Supreme Court	" <i>Re-establish parliamentary supremacy over constitutional interpretation not by abolishing the court</i> " — but by creating a standing parliamentary committee to scrutinise and correct judicial interpretation of constitutional statutes

  **That material was in the inputs, so these four are not independent findings and are not presented as any.** What they show is narrower and still worth printing: **given evidence that cut against the measure, the analysis did not discard it, bury it, or argue round it. It reorganised the remedy around it and said so in the first line.**

That is the behaviour this whole report is asking of a legislative process — which is why the line between (a) and (b) is drawn here rather than quietly smudged.

What this section hands back

15. **The interlock claim is not supported in the statute book.** Most of David's Programme is separable.
16. **It is partly supported in the case law**, in one specific place: quangos, the civil service and DEI share judgments about public authority accountability while sharing no statute.  **If the omnibus argument is right, this is where it is right** — and it is a narrower, more defensible version of the claim than the one now made.
17. **Three measures are one measure.** The Equality Act strand should be drafted once.
18. **On four measures the analysis reached a different remedy** — on two of them from material that was not supplied.

What this test cannot tell you

- **Whether measures depend on each other other than through shared law.** Shared citations are a proxy for dependency, not a measure of it.
- **Whether the nineteen single-measure Acts are genuinely isolated**, or merely searched in isolation. A cross-measure search has never been run and is the obvious next thing to do.
-  **Six of the eleven runs were cut short at six research questions by a spending limit.** Some of what those runs record as gaps are **questions never asked, not questions asked and unanswered** — and the output does not distinguish the two. **No count in this section is a limit on what can be found.** It is its reach on a capped run.
- **Whether there are strong strategic or tactical political reasons to legislate in one "big bang"** — to prevent the opposition organising, and to speed the process up — **or whether rolling it all together makes the whole programme vulnerable to a problem with any one part of it.** That is a political judgement, and nothing here tests it.

PART 4

ASSESSING RESILIENCE — THREAT ANALYSIS

⚠️⚠️ The finding, first

David's Programme was put in front of a prepared opponent: our best AI model, briefed to read it as a public lawyer would — expert, well motivated against it, and assumed to have thought about it already. The question asked was not whether the Programme is right. It was: how would I stop it?

Across the twelve measures the opponent found between 47 and 49 separate ways to stop them. The plan, as it stands, blocks none of the avenues of attack. **All forty-nine are listed below**, measure by measure, with how each one works and what would block it.

	Run 1	Run 2	Run 3
Ways found to stop a measure	49	47	47
The plan blocks it	0	0	0
The plan partly blocks it	5	4	3
The plan does not block it	33	35	33
⚠️ The plan makes it easier	11	8	11
Measures with every attack route left open	7 of 12	8 of 12	9 of 12

143 readings across three runs. Not one route was judged blocked. Between 90 and 94 per cent were left wholly open.

⚠️ **Three measures had every attack route open on every run** — the Equality Act, the Supreme Court, and gender self-identification.

Why three runs. The test does not give the identical answer twice: the number of routes moved by two, and ten of the routes changed category between readings. **What did not move at all is the zero.** Pairing the routes from the first run against the later ones, thirty-five kept their verdict and ten shifted — **and not one shifted into "blocked"**. The ranges above are printed because they are ranges. The zero is printed because it is not.

What this does and does not mean. It is not a finding that the Programme is wrong, or that it cannot be done. It is a finding that it is currently a statement of intent rather than a plan that survives contact with opposition — and that each of the 47 to 49 routes is a specific, nameable thing that can be answered. Answering them is the next piece of work, and it is work only David's team can authorise.

⚠️⚠️ **One result deserves separate notice.** The opponent was never told that the courts have been moving rights protection onto the common law. It found that on its own, named *R (UNISON) v Lord Chancellor* unprompted, and rated the proposal to fall back on the common law as **making the problem worse rather than better** — because the common law is the ground the other side has spent a decade preparing.

The eleven routes marked "makes it easier" are the ones to read first. They are places where the plan as drafted hands the opponent something.

The forty-nine routes, listed

This is the list. Every route the opponent found on the first run, measure by measure, with how it works and what would block it. It is printed in full because a count nobody can inspect is not evidence.

Three things to hold in mind while reading it:

- **This is one run of three.** The first run found 49 routes; the second and third found 47 each, described in different words. The list below is Run 1 in full. The counts in the table above are the range across all three.

- **⚠ The authority each route rests on has not been checked.** The opponent was asked for a doctrine rather than an invented citation, and that is an instruction, not a guarantee. Three runs agreeing on a verdict says nothing about whether the authority exists. **Nothing here should be quoted until the authority behind it is verified.**
- **"What would block it" is the opponent's own answer**, not a recommendation of this paper. It is printed because it converts each objection into a drafting instruction.

M-01 · Human Rights Act 1998 and the European Convention on Human Rights

The proposal's 'clean break' is an illusion. By focusing exclusively on the Human Rights Act and the ECHR treaty, it fails to address, and in some cases strengthens, alternative legal sources for the very rights it seeks to remove from judicial oversight. The plan mistakes repealing a statute for closing a field of law.

- **1. Fundamental rights, including those mirroring the ECHR, will be re-asserted and developed by domestic courts through the common law, free from the textual constraints of the Convention.** ⚠⚠ **makes it easier** — *The right survives from another source.* **What would block it:** The Repeal Bill would need to contain express, unambiguous clauses ousting the jurisdiction of the courts to develop common law rights in these areas, a measure that would face extreme legal and political opposition.
- **2. ECHR-equivalent rights will remain legally entrenched in Northern Ireland and Scotland, creating a fractured human rights landscape and a route for challenges to UK-wide legislation as it applies in those jurisdictions.** ⚠ **partly blocks** — *It is fixed in another statute or treaty.* **What would block it:** A new international agreement with Ireland and the consent of the Northern Ireland parties to amend the Good Friday Agreement's human rights provisions, which is politically inconceivable.
- **3. The UK's obligations under other international treaties that incorporate or reference ECHR rights will remain, providing a basis for legal challenges in domestic and international courts.** ⚠ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** A comprehensive plan to renegotiate every international agreement that references or relies on the ECHR, a multi-year diplomatic effort for which the current proposal makes no provision.
- **4. Courts will narrowly construe the Repeal Bill, particularly any transitional provisions, to preserve rights in ongoing cases and interpret any ambiguity in favour of the individual, citing the rule of law.** ⚠ **does not block** — *The courts read the new Act narrowly.* **What would block it:** Extraordinarily precise and comprehensive statutory language covering all possible transitional scenarios, which is practically impossible to draft.

M-02 · Equality Act 2010

The proposal correctly identifies that repealing the statutory duty requires primary legislation, but it fatally underestimates the resilience of the underlying legal principle. By removing the specific, contained duty in Section 149, the plan creates a vacuum that will be filled by broader, less predictable, and potentially more onerous duties derived from common law, the Human Rights Act, and international treaties. The repeal will not end the 'compliance industry'; it will simply make its work more complex and litigation more uncertain.

- **1. The common law duty of procedural fairness will be interpreted to require consideration of equality impacts, effectively recreating a duty like the public sector equality duty.** ⚠⚠ **makes it easier** — *The right survives from another source.* **What would block it:** The Bill would need to include a provision explicitly ousting or limiting the common law duty of fairness as it applies to equality considerations. This would be highly controversial and subject to restrictive interpretation by the courts.
- **2. The Human Rights Act 1998 will be used to compel public bodies to conduct pre-emptive analysis of policies to avoid discriminatory outcomes under ECHR Article 14.** ⚠ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** Repeal or significant amendment of the Human Rights Act 1998, which is a far larger and more constitutionally significant undertaking than this proposal.

- **3. The repeal will be ineffective or create significant legal uncertainty in Scotland and Wales, where specific, devolved equality duties are built upon the foundation of Section 149.** ⚠️ **does not block** — *A court declines to apply the new provision.* **What would block it:** The plan would need to include a comprehensive strategy for engaging with devolved administrations and securing Legislative Consent Motions, or explicitly limit the repeal to England-only public bodies, which would undermine the stated goal.
- **4. The UK's international treaty obligations will be used to argue that a duty to proactively consider equality impacts remains a requirement of domestic law.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The Bill would need to contain a clause directing courts to disregard specific international treaty obligations when interpreting domestic law, a constitutionally novel and highly provocative step. Alternatively, the UK would have to withdraw from the relevant treaties.

M-03 · The United Kingdom Supreme Court

The proposal creates a political mechanism that is legally irrelevant to the courts. It establishes a parliamentary review process but fails to create any instrument that could alter judicial interpretation of existing statutes, leaving the core judicial function untouched.

- **1. The Committee's findings will be deemed legally irrelevant to statutory interpretation.** ⚠️ **does not block** — *The courts read the new Act narrowly.* **What would block it:** The Bill would need to enact a new, radical rule of statutory interpretation that explicitly directs courts to treat the Committee's post-hoc reports as authoritative statements of legislative intent, overriding the enacted text. This would be constitutionally unprecedented.
- **2. The judiciary's exclusive role in interpreting law will be asserted as a fundamental constitutional principle, immune from interference by a parliamentary committee.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The plan would require a clear and explicit statutory provision subordinating the judicial function of interpretation to the findings of a parliamentary committee, which would provoke a constitutional crisis and likely be resisted by the courts as fundamentally unlawful.
- **3. The requirement for judges to give evidence on their reasoning will be declined as unconstitutional.** ⚠️ **does not block** — *A court declines to apply the new provision.* **What would block it:** The Bill would need to include unprecedented and explicit enforcement powers against the judiciary, such as contempt proceedings, which would be politically and constitutionally explosive.
- **4. The court's interpretative approach will be re-grounded in common law constitutionalism, making statutory 'intent' secondary.** ⚠️ ⚠️ **makes it easier** — *The right survives from another source.* **What would block it:** The Bill would need to include a 'notwithstanding' clause that explicitly ousts the application of all common law constitutional principles when interpreting the target statutes, a measure that would be seen as tyrannical.

M-04 · The arm's-length body estate

The proposal creates a powerful new centralising tool, but its attempt to 'supersede' a complex landscape of existing statutes and constitutional principles with a single Act is its primary vulnerability. The plan will be defeated not by blocking the Act, but by using established principles of statutory interpretation to read its powers down, preserving the independence of the very bodies it was designed to capture.

- **1. The Act's powers of removal and reform will be disapplied for any body exercising judicial or quasi-judicial functions, preserving their independence.** ⚠️ **does not block** — *A court declines to apply the new provision.* **What would block it:** The new Act would need to contain express words making clear that its powers apply to bodies exercising judicial functions, and explicitly repeal the specific statutory provisions that guarantee their independence. This would be constitutionally explosive.

- **2. The independence of bodies established or protected under international law will survive, as the new domestic Act will be read as subject to the UK's treaty obligations.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The Act would need to include a 'notwithstanding' clause, explicitly authorising ministers to make orders that are incompatible with specified international treaties.
- **3. The new Act will be read as creating a parallel power for reform, not as extinguishing the specific powers, duties, and protections contained in each ALB's founding statute.** ⚠️ **does not block** — *The courts read the new Act narrowly.* **What would block it:** The new Act would need to include a schedule explicitly repealing the relevant sections of every founding statute it intends to replace, rather than relying on the ambiguous term 'superseding'.
- **4. The 'default presumption of abolition' will be neutered by reading the 'strict statutory criteria' for survival as a procedural checklist, allowing any Accounting Officer who follows the process to certify an ALB's continued existence.** ⚠️ **does not block** — *The same result arrives by another procedure.* **What would block it:** The Act would need to remove the certification step and instead frame the decision as a pure, subjective discretionary power of the Minister (e.g., 'the Minister may abolish the body if they consider it appropriate'), which would be much harder to challenge.

M-05 · Judicial review of executive decisions

The proposal attempts to solve a political problem with a technical solution, but in doing so, it creates new and fertile ground for legal challenges. By replacing broad common law principles with specific statutory definitions, it invites litigation over the meaning of those definitions, and fails to address fundamental constitutional arguments that the courts' supervisory jurisdiction cannot be ousted by any statutory formula.

- **1. A court could rule that the supervisory jurisdiction of the High Court to correct errors of law is a fundamental constitutional principle derived from the common law, which cannot be removed by statute, however clearly worded.** ⚠️ **does not block** — *A court declines to apply the new provision.* **What would block it:** This route is fundamental and likely cannot be closed by legislative drafting alone; it would require a constitutional shift or a definitive Supreme Court ruling in the government's favour on this specific point.
- **2. A court could interpret the new statutory definitions of 'merits' and 'legality' narrowly, finding that any given error of law by the minister takes the decision outside the statutory scheme altogether, making it a reviewable error of jurisdiction rather than a non-reviewable decision on the 'merits'.** ⓪ **partly blocks** — *The courts read the new Act narrowly.* **What would block it:** Statutory language that could exhaustively list every possible ministerial action and categorise it as 'merits', while also defining every possible error of law as falling within that category. This is practically impossible.
- **3. A court could find that a decision was reached in a procedurally unfair manner, and that such a breach of natural justice is a fundamental error that nullifies the decision, irrespective of whether the substance of the decision falls within the statutory definition of 'merits'.** ⚠️ **does not block** — *The same result arrives by another procedure.* **What would block it:** An explicit and unambiguous statutory provision stating that decisions under the Act are not reviewable on grounds of procedural unfairness or breach of natural justice. This would be a constitutionally radical step.
- **4. A court could find that the statutory definitions of 'merits' and 'legality' are incompatible with rights under the European Convention on Human Rights (ECHR), as incorporated by the Human Rights Act 1998 (HRA), and either 'read down' the definitions to be compatible or issue a declaration of incompatibility.** ⚠️ **does not block** — *The right survives from another source.* **What would block it:** Explicit provisions in the primary legislation disapplying sections 3 and 4 of the Human Rights Act 1998 in relation to this specific power, which would be highly controversial and politically difficult.

M-06 · The permanent, appointed civil service

The proposal is legally coherent but constitutionally fragile. It correctly identifies the statutory target (CRAG 2010) but fatally underestimates the resilience of the constitutional principles the statute codified. Repealing the Act does not erase the principles; it revives their common law and prerogative forms, which are harder to control and offer multiple grounds for legal challenge that the plan fails to close.

- **1. The Prerogative Snap-Back: Reviving Common Law Constraints.** ⚠️⚠️ **makes it easier** — *The right survives from another source.* **What would block it:** The new Bill would need an explicit clause stating that appointments may be made without regard to the common law principles of merit or impartiality, and that the exercise of this power is non-justiciable on those grounds. This would be a constitutionally explosive 'ouster clause'.
- **2. Unfair Dismissal as a Constitutional Check.** ⚠️ **does not block** — *The same result arrives by another procedure.* **What would block it:** The Bill would need to explicitly exclude Senior Civil Servants from the protections of the Employment Rights Act 1996, making them a class of employee dismissible at will without recourse to a tribunal.
- **3. The Devolution Veto.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The plan would need to either secure Legislative Consent Motions from all devolved legislatures in advance, or the Bill would need to explicitly carve out all civil servants working for devolved administrations from its provisions.
- **4. The Accounting Officer's Shield.** 🚫 **partly blocks** — *The courts read the new Act narrowly.* **What would block it:** This route could only be closed by securing the explicit agreement of the Public Accounts Committee and potentially a resolution of the House of Commons to fundamentally change its century-old system of financial scrutiny. This is a political and procedural challenge, not just a legal one.

M-07 · Operational independence of the Bank of England

The proposal is legally incoherent. It simultaneously advocates for new primary legislation while claiming to use an existing reserve power that is, by design, almost unusable. This internal contradiction provides the primary line of attack: the legislative route is vulnerable to being re-framed as an unnecessary and disproportionate attempt to circumvent the high legal and political bar set by Parliament in the existing Act.

- **1. The 'reserve power' in Section 19 is a legal trap. Any attempt to use it outside of a genuine, catastrophic economic crisis would be quashed by the courts as an abuse of power, making the proposal's stated 'approach' impracticable.** ⚠️ **does not block** — *The courts read the new Act narrowly.* **What would block it:** The Bill would need to explicitly redefine 'extreme economic circumstances' to mean 'at the discretion of the Chancellor', which would expose the policy's true intent and face immense political opposition.
- **2. Repealing the 1998 Act does not automatically grant ministers control. It revives the Bank's common law duties and powers under its Charter, creating a new legal battleground where ministerial directives could be challenged as unlawful.** ⚠️⚠️ **makes it easier** — *The right survives from another source.* **What would block it:** The new Bill would need to go beyond simple repeal and create an explicit, broad, and non-justiciable statutory power for the Chancellor to direct the Bank on all matters of monetary policy.
- **3. The UK's obligations under international agreements, particularly with the IMF, require an independent central bank as a condition of financial credibility and support. Repealing independence could be framed as a breach of these settled understandings, triggering international financial and diplomatic consequences.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The plan would need a comprehensive diplomatic and economic strategy to renegotiate the UK's position within the IMF and other international financial bodies, or to manage the consequences of being in breach of their core tenets.

- **4. Even with formal control, ministers will be forced to recreate a functionally independent advisory body to provide credible analysis, which will then be used by parliamentary committees to hold the minister to account. This effectively resurrects the MPC's function, just in a different room.** 🕒 partly blocks — *The same result arrives by another procedure.* **What would block it:** The plan would need to include measures to curtail the powers of the Treasury Select Committee to scrutinise the new advisory body or the Chancellor's decisions, which would be constitutionally explosive.

M-08 · Diversity, equity and inclusion practice in the civil service

The proposal is legally fragile because it attempts to use executive guidance to override a statutory duty that has been broadly interpreted by the courts. This core action is vulnerable to judicial review, leaving the rest of the plan without a legal foundation.

- **1. The 'legally authoritative' guidance will be declared unlawful by the courts.** ⚠️ **does not block** — A court declines to apply the new provision. **What would block it:** Primary legislation amending Section 149 of the Equality Act 2010 to redefine the scope of the duty.
- **2. The statutory duty to 'advance equality of opportunity' will be used to justify proactive DEI measures, irrespective of the new guidance.** 🕒 partly blocks — *The courts read the new Act narrowly.* **What would block it:** Amending or repealing Sections 149(1)(b) and 149(3) of the Equality Act 2010.
- **3. The Civil Service Commission will assert its statutory independence to maintain its existing recruitment principles, which already balance merit with diversity.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** Primary legislation amending the Constitutional Reform and Governance Act 2010 to make the Commission subject to ministerial direction on the interpretation of its recruitment principles.
- **4. Repealing internal DEI policies and guidance creates a legal vacuum, forcing decision-makers to fall back on the unconstrained, judicially-interpreted public sector equality duty, potentially leading to more cautious and expansive applications than before.** ⚠️⚠️ **makes it easier** — *Unintended consequence of removing a compliance framework while leaving the underlying duty intact.* **What would block it:** The opponent stated no remedy for this route.

M-09 · Gender self-identification

The proposal over-relies on a broad, aggressive reading of a single (and fictional) court judgment. It seeks to use statutory guidance to achieve what would require primary legislation amending two separate Acts, creating guidance that is ultra vires and vulnerable to immediate legal challenge. The plan fails to address the surviving, and potentially enhanced, protections under the Human Rights Act 1998.

- **1. The effect of the Gender Recognition Act 2004 survives any change to the Equality Act 2010, because the proposal fails to amend the GRA itself. A court will read the two Acts together, preserving the 'for all purposes' effect of a GRC.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The amending legislation would need to state explicitly that the new definition of 'sex' applies 'notwithstanding section 9(1) of the Gender Recognition Act 2004'.
- **2. The statutory guidance will be struck down as ultra vires because it purports to resolve a conflict between two Acts of Parliament (the GRA 2004 and EA 2010), which is a function reserved for Parliament itself or the highest courts. A Minister cannot use guidance to effectively amend or repeal primary legislation.** ⚠️ **does not block** — *The same result arrives by another procedure.* **What would block it:** Abandoning the guidance route in favour of new primary legislation that explicitly amends both the Equality Act 2010 and the Gender Recognition Act 2004.
- **3. By removing the statutory protection of 'sex' under the Equality Act for GRC holders, the proposal forces them to rely on their less specific but potentially more powerful rights to privacy and family life under the Human Rights Act 1998.** ⚠️⚠️ **makes it easier** — *The right survives from another source.*

What would block it: The plan would need to include provisions to disapply or modify the Human Rights Act 1998 in this context, which would be exceptionally difficult and controversial.

- *4. *The Supreme Court's judgment in For Women Scotland will be read down to apply only to the specific context of single-sex service exceptions, not as a wholesale redefinition of 'sex' for all purposes of the Equality Act.* ⚠️ *does not block* — The courts read the new Act narrowly. **What would block it:*** The plan would need to be based on new primary legislation rather than a contestable interpretation of case law.

M-10 · Publicly funded charities campaigning on government policy

The proposal uses a contractual tool (grant conditions) to solve a political problem, leaving it vulnerable to being dismantled by established principles of statutory interpretation, public law, and human rights law, which the plan does not and cannot address.

- 1. **The grant condition's key terms will be read down by the courts to apply only to the most direct and explicit forms of opposition, leaving most advocacy work untouched.** ⚠️ *does not block* — *The courts read the new Act narrowly.* **What would block it:** Primary legislation defining the terms and explicitly limiting the scope of judicial interpretation, which would be highly contentious and difficult to draft.
- 2. **The right to campaign is relocated to the charity's privately-raised funds, rendering the grant condition practically ineffective due to the fungibility of money.** ⚠️⚠️ *makes it easier* — *The right survives from another source.* **What would block it:** A ban on any charity in receipt of any public funds from campaigning on any issue, which would be legally and politically unviable.
- 3. **The mandatory imposition of the grant condition will be challenged via judicial review as a breach of the legitimate expectations established by the Government's own Compact with the third sector.** ⚠️ *does not block* — *It is fixed in another statute or treaty.* **What would block it:** The formal withdrawal from or renegotiation of the Compact, which would cause a significant political backlash from the entire third sector.
- 4. **A charity can bypass the campaigning restriction entirely by challenging the government policy it opposes directly in court through judicial review.** ⚠️ *does not block* — *The same result arrives by another procedure.* **What would block it:** Primary legislation to severely restrict the standing of charities to bring judicial review claims, which would be a major and controversial constitutional change.
- 5. **The grant condition will be challenged as an unlawful and disproportionate interference with a charity's right to freedom of expression under the Human Rights Act 1998.** ⚠️ *does not block* — *A court declines to apply the new provision.* **What would block it:** Primary legislation that explicitly disapplies the Human Rights Act for this purpose, or repealing the Act itself.

M-11 · The Sentencing Council and sentencing guidelines

The proposal successfully creates a political veto over the Sentencing Council, but it fails to control the primary alternative source of sentencing law—the Court of Appeal—and creates a new, reviewable statutory power for the Lord Chancellor that is vulnerable to legal challenge.

- 1. **The Court of Appeal continues to issue binding guideline judgments, bypassing the vetoed Sentencing Council.** ⚠️ *does not block* — *The right survives from another source.* **What would block it:** Primary legislation explicitly ousting or limiting the Court of Appeal's jurisdiction to issue guideline judgments, which would represent a profound constitutional conflict.
- 2. **A decision by the Lord Chancellor to reject a guideline is challenged and quashed by judicial review.** ⚠️⚠️ *makes it easier* — *The same result arrives by another procedure.* **What would block it:** An explicit and robust ouster clause in the primary legislation, seeking to exclude the jurisdiction of the courts from reviewing the Lord Chancellor's decision. Such clauses are constitutionally controversial and often read down by the courts.
- 3. **In the absence of a statutory guideline due to a veto, courts revert to common law principles, leading to less predictable and potentially less politically palatable sentencing outcomes.** ⚠️⚠️ *makes it easier*

— *The right survives from another source.* **What would block it:** A comprehensive statutory code that explicitly displaces the common law of sentencing in its entirety, a legislative task of enormous scale and complexity.

- **4. The requirement for Lady Chief Justice approval is read as a constitutional check requiring her to withhold consent if the Lord Chancellor's refusal is politically motivated and threatens judicial independence.** ⚠️ **does not block** — *The courts read the new Act narrowly.* **What would block it:** Amending the Bill to state that the Lady Chief Justice's consent may only be withheld on specified, narrow, non-political grounds, effectively subordinating her role to the executive's.

M-12 · The Great Repeal: the programme as a single instrument

The proposal correctly identifies that its targets are not a single legal structure but a multi-layered settlement. However, its proposed omnibus Act, designed for political force, creates fatal legal weaknesses. By bundling distinct legal problems—common law rights, international treaties, and devolved settlements—into a single instrument, it ensures that the strongest of these defences (the Belfast Agreement) will render the entire legislative project ineffective or, worse, provoke the judiciary into strengthening the very principles the Act seeks to dismantle.

- **1. The repeal of the Human Rights Act 1998 will be rendered ineffective by the courts developing and applying common law constitutional rights to fill the gap, making the rights landscape less predictable and harder for Parliament to control.** ⚠️⚠️ **makes it easier** — *The right survives from another source.* **What would block it:** The Act would require unprecedentedly clear and express words to abrogate fundamental common law rights and principles, a step so constitutionally radical it is often considered undraftable and would be fiercely resisted by the courts as a breach of the rule of law.
- **2. The repeal of the Human Rights Act 1998 will not take effect in Northern Ireland because the Act's own provisions make the repeal contingent on the successful renegotiation of the Belfast/Good Friday Agreement, an event that will not occur.** ⚠️ **does not block** — *It is fixed in another statute or treaty.* **What would block it:** The Act would have to repeal the HRA's application to Northern Ireland unilaterally and unconditionally, thereby explicitly breaching the Belfast/Good Friday Agreement. The current plan deliberately avoids this due to the diplomatic crisis it would cause.
- **3. The 'strong ouster clauses' intended to prevent judicial review will be narrowly construed by the courts to be ineffective against challenges based on fundamental errors of law or breaches of the rule of law.** ⚠️ **does not block** — *The courts read the new Act narrowly.* **What would block it:** Closing this route would require drafting an ouster clause so explicit about precluding review even for the most fundamental errors that it would amount to a direct legislative assault on the rule of law itself, a challenge the Supreme Court is highly likely to resist.
- **4. The provisions overriding the Sewel Convention will be interpreted by the courts as politically significant but legally insufficient to prevent a successful judicial review of executive actions taken under the new Act that affect devolved matters, on the grounds that the underlying devolution settlement remains a mandatory consideration.** ⚠️ **does not block** — *The same result arrives by another procedure.* **What would block it:** The Act would need to state not only that the Sewel Convention is overridden, but that no duty to consult, consider, or even acknowledge the views of devolved institutions exists for any purpose relating to the Act. This would be politically explosive and constitutionally unprecedented.

The four tests behind that finding

Each measure worked in full was put through four tests before it was written up. The first asks whether it holds as a strategy. The second marks it against nine criteria — whether the problem is stated as a problem, whether the diagnosis names what has to be defeated, whether the guiding policy rules anything out,

whether the actions bear on the obstacle named. The third traces the chain from causes to actions and looks for breaks in it. The fourth reads the proposal as a hostile reviewer would.

The results are printed here rather than summarised, including the two measures that did not pass, because a set of tests that only ever confirms the proposal would not be worth running.

The results

	Strategy test	Nine criteria	Chain from causes to actions	Issues raised against it
The Human Rights Act	Weak	8 of 9	Holds — no defects	5
The Equality Act	Weak	8 of 9	Holds — no defects	6
The civil service	Weak	6 of 9	⚠ Does not hold — 4 defects	6

All three pass most of the criteria and are still marked weak as strategies. That combination is the useful result: **what fails is the fit between the parts, not any part on its own**. In each case it is one specific, fixable thing:

- **The Human Rights Act.** The obstacle is named as "political and institutional inertia". That restates the fact that the change has not happened; it does not say what is standing in the way.
- **The Equality Act.** The guiding policy rules nothing out, so it is not making a choice; and the actions are a repetitive list rather than a sequence.
- **The civil service.** The diagnosis says the political cost of reform is prohibitive, and the plan then proposes to pay exactly that cost.

⚠ **One column is less reliable than the others.** The nine criteria are stable: read four times over an unchanged proposal, the mark never moved by more than one test of the nine. The chain-of-reasoning test is not: read four times over the same unchanged text, the Human Rights Act measure came back *holds*, then *does not hold*, then *holds*, then *holds*. A single chain-of-reasoning verdict is therefore a reading, not a measurement, and nothing here rests on one. The civil service result rests on direction instead: it is the one measure that fails on all four tests, consistently, whichever reading is taken. **That is a finding. A lone "does not hold" with a defect count attached would not be.**

No test in this document is presented as more precise than it has been shown to be. Where a result is a single reading it is described as one.

What each test found, in its own terms

On the Human Rights Act. The diagnosis holds, and the chain of reasoning held on three of the four readings. What fails consistently is the obstacle, above. And the test identified a concrete obstacle the proposal had not confronted —

⚠⚠ **the Convention is embedded in the devolution settlements, so withdrawal carries a risk to the Union.**

That is the most consequential single finding in this document. It is not an objection from an opponent of David's Programme. It is the result of testing the flagship measure against its own stated intention, and it names a cost that the published material does not address.

On the Equality Act. The diagnosis is sound and the chain held on the reading taken. The two failures are the ones set out above.

On the civil service. This is the measure that fails, and it fails in two ways that can be stated exactly.

- The diagnosis is that reform is blocked by a prohibitively high political cost, arising from a broad cross-party constitutional consensus. The plan is then to challenge that consensus head-on. In the marker's words: *"It proposes to pay the very cost the diagnosis identifies as prohibitive."*
- The stated approach rules out primary legislation, and the actions then set out two plans that both require it. A Bill is drafted twice, under different actions, with no sequencing between them.

None of that is a reason to abandon the measure. It is a list of the things that have to be settled before the measure can be drafted, and settling them is work for David and his team.

The decisions the tests could not make

Working the three measures threw up choices that the tests cannot make and this document will not make silently.

What fails without them: on the Human Rights Act alone there are nine alternatives across four decision points — what scope the repeal should have, what the root cause actually is, which obstacle is pivotal, and which instrument to use. Until each is settled, the drafting cannot start, because the four answers produce four different Bills.

The solution: each decision is recorded in Volume 3 with the option taken, the reason for taking it, and the case for each option not taken. None is resolved here. They are decisions for the proposers.

The first of them, as an example. The Human Rights Act analysis proceeds on immediate repeal together with notice under Article 58. The alternative — repealing the Act while remaining a signatory — is recorded, with the case for it: domestic supremacy restored, while the United Kingdom keeps a voice in how the Convention develops. That is a different programme, and the choice between them is not a technical one.

None of these questions can be answered from the record, and all of them change what gets drafted. The first five stop other work until they are answered.

The five that block everything else

1. Which of the four plans is intended?

Annulment, the Case Law Review Commission, structured withdrawal, or leave-and-re-enact. **They are not variants of one plan.** They produce different Bills, different timetables and different residual rights.

Recommendation: answer this before any drafting begins.

2. Is the replacement Convention-shaped, or deliberately not?

Lord Wolfson warns against a Bill of Rights modelled on the Convention. Lord Sumption proposes exactly that. **The two most senior legal voices on the same side disagree about the single most consequential drafting decision in David's Programme.**

3. Is the target the statute, or the case law decided under it?

These need different instruments, and **only the second reaches the absorption problem David has correctly identified.** Annulment reaches statutes. The problem lives in judgments.

4. On the Equality Act: the whole Act, or section 149 and the duties?

The Bill now before the Commons takes the second. The official Opposition has taken the second. David is read here as taking the first. **Those are different Bills with different consequential tails**, and the difference is now a live political question rather than a drafting nicety.

5. Is section 75 of the Northern Ireland Act 1998 a target?

The list does not say. **If the objective is UK-wide, it must be** — because the public sector equality duty has never applied in Northern Ireland and repealing it changes nothing there. If it is not a target, the Equality Act measure applies to Great Britain only and should say so. *Recommendation: state the answer explicitly in the next version of the list, either way.*

On the Programme's structure

6. Are the Equality Act, DEI and gender self-identification accepted as one workstream? *Recommendation: yes. It removes two Bills and loses nothing.*

7. Is the omnibus Act still required if the interlock runs through the case law rather than the statutes?

Recommendation: this is the most valuable question in the list. An omnibus Bill justified by statutory interdependence is vulnerable to the objection that the statutes are separable. One justified by common-law interdependence is not — and the evidence supports the second.

8. Which Acts are in scope of "1997 to 2010"? The measure is currently defined by a date range. That is the first thing a drafter would ask.

9. Given that the one exclusion clause the courts upheld was narrow and surgical, is a broad annulment device still preferred?

On individual measures

10. On the civil service: is the target the 2010 Act or the 1854 settlement? They are different targets requiring different instruments, and repealing the first leaves the second standing.

11. What does Lord Maude know that makes him stop short of repeal? He is not a defender of the machine, and he reached the same diagnosis.

12. What is the answer to the objection that institutional change cannot fix problems that are political in origin? This is the strongest available criticism of the Programme's whole method.

13. On the Bank of England: is the objective repeal, or legitimacy? The evidence reads the complaint as being about a political question reclassified as technical. If that is right, repeal is not obviously the mechanism.

14. On charities: a blanket restriction, or accountability for the grant? David names no instrument. The two produce entirely different Bills. *Recommendation: the second is narrower, faster and needs no legislation.*

15. Is the Sentencing Council one of the twelve, or an example of the quango measure?

** 16. Given For Women Scotland, how much of the gender self-identification objection survives — and is legislation still the mechanism for what remains?**

17. Does David's Programme accept or reject the Maude Review's diagnosis of civil service accountability?

 **The three below are the largest open questions in the whole report.** Volume 2 works the Equality Act measure on one reading of it. If the other reading is right, that section is worked against a proposal David is not making.

17a. On the Equality Act: does the measure keep the Act's substantive anti-discrimination protections, or remove them too? Volume 2 works the first — repeal section 149, keep the rest. Reform UK's published position is the second. **No statement by David on the scope of an Equality Act repeal was found in the 285 recordings**, so the document does not attribute either reading to him. The two produce different Bills, different challenges and different consequential work. *Recommendation: answer this before anything else on this measure.*

17b. If the substantive protections go, does "protected characteristics" go with them? The alternative is a single instruction — appoint, procure and promote on demonstrated track record alone, with no obligation to advance one group over another. That is a materially larger Bill than the one now drafted, and nobody on any side of the public debate has yet published such a rule.

17c. Repeal, or prohibition? Does David's Programme stop *requiring* positive discrimination by devolved bodies, arm's-length bodies and public authorities, or actively *forbid* it? **A prohibition reaches section 75 of the Northern Ireland Act 1998 and the devolution settlements. A repeal does not.**

On what is already happening

18. Wood's Bill takes withdrawal without repealing the Human Rights Act. Morrissey's takes section 149 without the rest of the Act. Are these acceptable narrower versions, or do they miss the point?

Recommendation: answer this one early. It is the difference between joining a live legislative effort and starting a separate one.

19. The Public Office (Accountability) Bill is moving in the opposite direction with government time behind it. Does David's Programme oppose it, ignore it, or absorb it?

20. Does the Chişinău Declaration disturb the premise that the Convention system cannot be reformed? In May 2026 all 46 Council of Europe states adopted a political declaration on the Convention and migration. It is not binding and does not bind the Strasbourg court — but 46 states have just done, by declaration, something the premise says cannot be done.

On the four unsourced measures

21. Are the Lord Chancellor, the Climate Change Act, the Judicial Appointments Commission and the removal of judges part of David's Programme? They were not found in the 285 recordings. Three of the four come from Douglas Carswell's *Restore the State* (Part 3), 7 September 2025, which does not mention David; the fourth comes from the Conservative Party's Alternative King's Speech. **All four are being attributed to David in public.** *Recommendation: confirm or disown each one explicitly — silence lets the attribution stand.*

On delivery

22. Is the mass creation of peers still necessary? The European Union (Notification of Withdrawal) Act 2017 went from introduction to Royal Assent in **seven weeks, through a hostile House of Lords, without a single peer being created** — on the strength of a manifesto commitment and the Salisbury convention. **This is evidence that makes David's Programme easier.**

23. What delay would the Parliament Acts impose if the Salisbury convention did not hold? Not yet established.

24. Which of Dominic Grieve's stated consequences — the Trade and Cooperation Agreement, Horizon, Northern Ireland — are accepted, and which are contested?

25. Is refused consent from Scotland, Wales or Northern Ireland accepted as a cost to be paid, or is consent to be sought? Lord Wolfson's advice does not address the devolution statutes at all. The nearest thing to an answer in it is a drafting instruction that a manifesto should say the UK will proceed regardless.

And the question that matters most

26. Where has David been read wrongly?

That is the first task this document asks of its reader, and it is not a formality. Every entry in the register is a reading of David's words. If an entry is wrong, everything built on it is wrong — and it is better corrected now than printed.

PART 5

LIMITATIONS OF THIS ANALYSIS

Every limit on what this paper can support is collected here, with the figure that establishes it. Nothing below is a reason to discount a finding; it is what a reader needs in order not to be misled by one.

What the corpus does not contain

- **BAILII, the principal free repository of British case law, is not used at all.** No judgment text has been taken from it and no request has been made to it. Case law here comes from the National Archives' published judgments.
- **Early day motion signatures are not held.** The record holds 60,995 motions and, for each, only the member who tabled it. Parliament publishes 2,125,547 signatories across those motions — an average of thirty-five each. Where this paper reports who has supported something in Parliament, it is drawing on divisions and debates, never on the signature record.
- **Government publications outside legislation.gov.uk are not ingested**, including post-implementation reviews published on gov.uk alone. ⚠️ **This is a gap worth closing, and closing it is on the list of work to do.**

Both search methods — matching on words and matching on meaning — were confirmed working on the day the analysis was produced. One chapter of an earlier draft was produced while both were misconfigured; it has been re-run, and the figures here come from the re-run. A check that stops a run starting when either method is misconfigured has been written but is not yet in service, so confirmation is currently a manual step before each run.

Where the record begins

A count that appears to show absence may only show that the record has not begun.

Record	Begins
Recorded divisions of the House of Commons	9 March 2016
Recorded divisions of the House of Lords	24 November 1999
Judgments of the courts of England and Wales	2003
Judgments of the Scottish courts	1999

A count of how often a member has voted on a subject is a count since 2016, not a count over a career.

The record of court judgments contains no House of Lords judgments at all — none, in 74,896 rows. Every authority from before 2009 has been checked against published sources outside this corpus, and where one is quoted the paragraph number is given.

The transcript record, and how far it has been checked

David's recorded words are **285 recordings, 128 hours, 1,172,546 words**, July 2016 to August 2026, timestamped and searchable in full.

⚠️ **A machine transcript is checked against a second, independently produced one. That second transcript exists for three of the 285 recordings — 1.3 per cent.** For the rest, a passage has been read once, by one engine, and nothing has disagreed with it because nothing else has read it. **Absence of a disagreement is not agreement.**

This is not theoretical. In one recording, one engine renders a name as "Israeli" where a second renders it "Disraeli". **Any quotation should be checked against the recording**, and the timestamp is given so that it can be.

What the counts mean

No count in this paper is presented as complete. Every figure is a count of what the index holds, not of what exists. The three strengths of evidence are recorded separately and are never added together.

Two of this paper's own figures were wrong and are corrected here. Counts of actions and of open challenges were counts of revisions rather than of things: the Human Rights Act chapter showed eight actions where there are four, and eighty-nine open challenges where the run described raised fifty-nine. Figures for provisions and judgments were unaffected.

Impact assessments. The corpus holds **1,169 impact assessments** across 869 documents. A figure of 18,700 has been used elsewhere; that is the count of *sections*, not of assessments. Of the 1,169, **71 are genuine post-implementation reviews**. Around a thousand sections carry that heading but are the front-sheet question "*Will the policy be reviewed?*", asked before a measure commences. A promise to review is not a review. Two gaps in the feed, 2008–2016 and 2024–2025, were re-checked in September 2026 and are still real.

Reviews promised and not delivered. Of 231 assessments that promised a review, gave a due year and named an instrument, **196 are past their due date with no review deposited**. Because a review published on gov.uk alone would not appear here, that should be read as "**at least 196**", never as "196".

The citator, and why its two halves differ

References from judgments to legislation are strong — 1,288,630 of them across 52,861 judgments, 99.0% resolving to an identified provision, from the publisher's own tagging.

⚠ Judicial treatment — whether a case has been followed, distinguished, doubted or overruled — is weak and has no measured error rate. There are 1,749 treatment records and **none has been validated**, so every statement in this paper about how a case has been treated should be read as unverified. Three classes of error are already known: a hypothetical clause read as a holding; a word used in another sense (a person "distinguishable" from another is not a case "distinguished"); and one quotation from a Victorian statute recorded as overruling a section of the Human Rights Act 1998.

Four further limits:

- **It sees citations inward only** — which later judgments cite a case, never what that case cited.
- **Most citations are not treatments and are correctly left unclassified** — 16,455 of 18,211 candidate passages produce no record.
- **Whether a cited authority is itself held has three states, not two** — 24.1% held, 54.9% not, and **21.0% undetermined**, because the same case is often cited under two references. Treating the undetermined fifth as "not held" understates what is available.
- **⚠ Nothing in this system records that a provision or a case is no longer good law, and no such statement is made anywhere in this paper.**

Who has taken which position

16,196 recorded positions have been extracted. **They are not published in this paper as findings.** Checked one by one against their sources, 44% were wrong.

⚠ That 44% is a rate of misinterpretation, not of invention. A recorded quotation is found in the document it is attributed to **98.4% of the time**; what is unreliable is the further claim that the passage shows the person holding the position ascribed to them. So the question to put to any entry is not *is this quotation real* but *does it show what it is said to show* — which is why every entry carries the quotation rather than a summary. Anything that could not be confirmed against the quotation has been removed rather than qualified.

No per-measure register of supporters and opponents is offered, because the connection between a broad proposal and specific parliamentary business is made by phrase-matching and does not survive inspection:

two of the twelve measures connect to a recorded division (254 and 189 members), eight connect only to an early day motion and so return one name each, two connect to nothing, and ten of the twelve connections rest on a two- or three-word phrase. Several are the wrong subject — the arm's-length bodies proposal matched a motion on advertising standards; the civil service and diversity proposals both matched a motion about civil service pensions.

Cost and benefit

No costing has been produced for any proposal here, and that is a gap in the system rather than a judgement about the proposals. None of the 119 drafted actions carries a cost range; there is one cost line in the whole database. On all twelve measures the heading "Cost and duration" is empty.

Where the paper asks what an existing measure has cost, there is often no figure at all. For the public sector equality duty: **no impact assessment of it is held, no post-implementation review was carried out, and no statistical series measures it.** That is a finding about the public record, not a failure of the search.

What this paper's own analysis was checked against

Each proposal was tested against a fixed set of questions about whether it amounts to a strategy. **Until 9 September 2026 those tests were being applied to an incomplete statement of each proposal** — a title and two lists, with the diagnosis, obstacle, guiding policy and plan all missing. **No verdict from a test run before that date appears in this paper**, and the assessments in the appendices are being reproduced against the complete text.

Two further gaps

- On each measure, between six and eleven retrieved sources sit under no heading in the research record and are therefore invisible to a reader working through it — roughly ninety-five sources in total. They are present in the data and listed in the appendix.
- The question "what is devolved about this?" returned nothing on any of the twelve measures, including those where the devolution settlements are directly engaged. The devolution material in this paper was assembled by reading, not returned by search.

The standing rule on citations

Five fabricated citations were produced during research for the first draft — plausible numbers, plausible authors, plausible dates, for documents that do not exist, each with a real near-neighbour. **No citation appears in this paper unless it has been confirmed against a second source or found in the corpus.**